

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN REYES, II
HEARING DATE: 12/17/2025

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: MSL20-06032
CASE NAME: ROMON CALHOUN VS. RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THIS CASE PER THE 5-YEAR STATUTE OF LIMITATIONS.

FILED BY:

TENTATIVE RULING:

The Parties and/or Counsel are ordered to appear at the Hearing in person or via Zoom on the Order to Show Cause as to why this case should not be dismissed pursuant to Cal. Code of Civ. Proc. § 583.310.

The Court takes judicial notice of its own files and the register of actions pursuant to California

Evidence Code section 452(d)(1). A review of the register of actions and the files in this matter confirms that plaintiff Romon Calhoun commenced this limited jurisdiction action on December 17, 2020.

California Code of Civil Procedure section 583.310 provides that an action shall be brought to trial within five years after the action is commenced against the defendant. Accordingly, the five-year period for bringing this action to trial expires on December 17, 2025, the day of this hearing. The trial court lacks discretion to retain jurisdiction beyond this statutory period. As decisional authority makes clear, a trial court's discretion is not unlimited and must be exercised in conformity with the spirit of the law and in a manner to subserve, rather than impede or defeat, the ends of substantial justice. (*Coe v. City of Los Angeles* (1994) 24 Cal.App.4th 88.)

The five-year statutory period is subject to tolling where, for all practical purposes, going to trial would be impossible, whether due to a total lack of jurisdiction in the strict sense or because proceeding to trial would be both impracticable and futile. The purpose of the statute is to prevent avoidable delay for an undue period, not to arbitrarily close the proceedings at the expiration of five years in every case. Whether a proceeding is impossible, impracticable, or futile must be determined in light of all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves. The critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case. (*Hill v. Bingham* (1986) 181 Cal.App.3d 1.)

Here, the record is devoid of facts supporting reasonable diligence, tolling or extenuating circumstances that would justify the delays in bringing this case to trial. After reviewing plaintiff Romon Calhoun's 64-page declaration, the Court finds that while plaintiff was represented by counsel, he managed this litigation and exercised reasonable diligence in prosecuting his case. He filed an initial complaint, which was amended three times, and the parties engaged in discovery and motion practice over the last five years. The case was previously set for trial at least once by the Court. However, since plaintiff has proceeded as a self-represented litigant, he has failed to act with the requisite diligence in preparing this case for trial, beyond conducting some initial discovery. The record further suggests that plaintiff has not cooperated with discovery conducted by defendants, which prompted an additional discovery motion to be heard on December 17, 2025—the final day to bring this case to trial.

Plaintiff's contention that the COVID-19 pandemic warrants tolling is unavailing. Statewide court rules extended the time for trial by six months for actions filed before April 6, 2020. This action, filed on December 17, 2020, was not subject to that extension. Plaintiff also argues that the assignment of several different judges during the litigation contributed to the delays. However, a review of the record indicates that plaintiff was not diligent in pursuing a trial after its initial setting.

Based on the foregoing, the Court's tentative ruling is as follows: This action is **dismissed with prejudice pursuant** to California Code of Civil Procedure section 583.310. This order of dismissal is stayed pending the outcome of plaintiff's appeal currently pending before the Superior Court on the ruling denying his motion to reclassify this case.

2. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING ON ORDER OF EXAMINATION IN RE: AS TO VIKTORIYA VOLZHENINA APPLICATION AND
ORDER FOR EXAMINATION FILED BY GABRIELA BENSON BODDEN
FILED BY:

TENTATIVE RULING:

Both Parties / Counsel are ordered to appear for the hearing on Defendant Volzhenina's Motion to Set Aside Default, See Line 3 below. This order for examination shall trail the hearing on the Motion.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant Viktoriya Volzhenina's motion to set aside the default and default judgment is **granted**, and her motion to quash service of summons and complaint is **granted**. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

Background

This action arises from a landlord-tenant dispute brought by Plaintiffs Gabriela Benson Bodden and Jerlin Veliz Carcamo against Defendant Viktoriya Volzhenina, doing business as Bay Team Realty. Plaintiffs filed the complaint on June 14, 2022, alleging habitability violations, nuisance, retaliation, and related statutory claims concerning a rental property in Richmond, California. Defendant did not appear, and on Plaintiffs' application, the Court entered default judgment on May 22, 2025, awarding Plaintiffs \$1,510,283.12.

After filing the action, Plaintiffs attempted personal service on Defendant at an address identified by a private investigator as Defendant's residence at 575 Eddy Street, Apartment 208, San Francisco. Those attempts occurred in December 2022 and July 2023. Plaintiffs thereafter attempted substituted service at Defendant's workplace, the Judicial Council building located at 455 Golden Gate Avenue, San Francisco.

Defendant did not appear, default was entered, and default judgment followed in May 2025.

Defendant now moves to set aside the default and default judgment under CCP sections 473(d) and 473.5, asserting that the judgment is void due to defective service or, alternatively, that she lacked actual notice of the action in time to defend. Defendant contends that she was working remotely for the Judicial Council pursuant to a COVID-19 Remote Work Policy and had not been physically present at the 455 Golden Gate Avenue building for several years. On that basis, Defendant argues that the Judicial Council address was not her "usual place of business." Defendant further argues that substituted service on an unidentified "Secretary" in a large, multi-agency building does not comply

with CCP section 415.20(b), and Plaintiffs' process-server's declaration is unreliable because it contains factual impossibilities, including attempted service on weekends when the building was closed. Defendant states she first became aware of the lawsuit and the judgment on August 15, 2025, while reviewing court records in another matter.

Plaintiffs oppose the motion, asserting that the Judicial Council address is Defendant's workplace, that Defendant received mail there, and that the motion should be denied for lack of proper service. Plaintiffs further argue that Defendant's claim of lack of notice is undermined by her conduct, including recording grant deeds transferring real property within one day of entry of the default judgment and using inconsistent or nonfunctional addresses in other court filings.

In reply, Defendant reiterates that Plaintiffs have not met their burden to establish valid service after personal jurisdiction was challenged. Defendant further argues that accusations regarding property transfers and address inconsistencies are irrelevant to the service issues. Finally, Defendant asserts that Plaintiffs' opposition papers were served by UPS delivery to a post office box and by email without consent and argues that these methods were defective.

Standards

Set Aside Default

Under CCP section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service." (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) "When a court lacks jurisdiction in a fundamental sense, an ensuing judgment is void, and thus vulnerable to direct or collateral attack at any time." (*Strathvale Holdings v. E.B.H.* (2005) 126 Cal.App.4th 1241, 1249.)

Courts may set aside default or default judgment pursuant to CCP section 473.5 for lack of actual notice. "The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (CCP section 473.5.)

Quash Service

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . ." (Code Civ. Proc., § 418.10(a).) The motion must be filed on or before the last day on which the defendant must plead or within any further time that the court may for good cause allow. (*Id.*)

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (*Id.* at 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) "A court lacks jurisdiction over a party if there has not been proper service of process." (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.)

CCP section 415.20 provides that "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving

a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business . . . in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail" (CCP section 415.20(b).)

Discussion

Defendant seeks to set aside the default entered against her and to quash service of summons, moving pursuant to CCP sections 473(d), 473.5, and 418.10.

Plaintiffs' process server Ameer Aziz declares that he effected substituted service on Defendant at 455 Golden Gate Avenue, San Francisco, on September 24, 2024, at approximately 12:30 p.m., by leaving the summons, First Amended Complaint, and related documents with an adult individual working at the receptionist desk who identified himself as "John Swintertown," and thereafter mailing the documents to Defendant at the Golden Gate Ave address. The process server states that the location was the Judicial Council of California office and that he was told it was Defendant's place of employment. (Declaration of Ameer Aziz filed 12/4/25 ¶¶ 3, 10.)

The process server declares that he made multiple unsuccessful attempts to personally serve Defendant at 455 Golden Gate Ave.: June 25, 2024 (fifth-floor office; no one available); June 29, 2024 (directed by posted signage to another floor; receptionist refused); July 9, 2024 ("Marcus," fifth-floor supervisor; declined to accept service except for the Judicial Council Board); and August 17, 2024 (front desk receptionist again refused). (*Id.*, ¶¶ 5–9; and see 9/27/24 Declaration of Diligence and 11/25/24 Amended Proof of Service of Summons and First Amended Complaint.)

A "proper place" to attempt personal service may be a defendant's usual place of business. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) In this case, Plaintiffs submit evidence of attempted personal service of the complaint at an address identified by a private investigator as Defendant's residence at 575 Eddy Street. However, they do not contend that those attempts satisfied the personal-service prerequisite for substituted service of the First Amended Complaint. Instead, they rely on alleged attempts to personally serve Defendant at the Golden Gate Avenue address before resorting to substituted service at that location. (See 9/27/24 Declaration of Diligence of Ameer Aziz.) Accordingly, the Court considers only the alleged personal-service attempts at the Golden Gate Avenue address in evaluating whether substituted service of the First Amended Complaint was proper.

To effect substituted service on an individual, a plaintiff must demonstrate that personal service could not be accomplished with reasonable diligence. (CCP § 415.20(b).) "Reasonable diligence" requires a thorough, systematic investigation and inquiry conducted in good faith by the party or the party's agent. (*Watts v. Crawford* (1995) 10 Cal.App.4th 743, 749.)

On this record, Plaintiffs have not established that service was proper.

First, Plaintiffs' initial process server, Dimitrius Forakis, stated in a declaration attached to a proof of service of the original complaint filed December 14, 2022, that on November 20, 2022, a secretary at the Golden Gate Avenue address advised him that Defendant was employed there but was working from home. Once the process server was told that Defendant was working remotely and was not physically present at that location, Plaintiffs were required to attempt service at another location. Repeated attempts to effect personal service at the Golden Gate Avenue address after learning Defendant was not physically present do not constitute reasonable diligence. (See *Espindola v. Nunez* (1988) 199 Cal. App. 3d 1389, 1392 [efforts should be reasonably calculated to provide the defendant

with actual notice of the action].)

Second, the record does not reflect any attempt to personally locate or request Defendant at the Golden Gate Avenue address. The attempts described consist of efforts to leave the documents with front-desk or reception personnel.

Third, as Defendant points out, the proof of service and declaration of diligence contain internal inconsistencies that undermine their reliability. These include purported service attempts on dates when the Golden Gate Avenue building was closed to the public, multiple attempts occurring on the same day of the week, the failure to consistently identify floor numbers or the agency within a multi-agency building; and references to individuals or job titles that Defendant asserts do not exist at that location. Nothing in the declaration of Ameer Aziz filed December 4, 2025 resolves these discrepancies, including Defendant's assertion that the Golden Gate Avenue building is not accessible on the weekend. Accordingly, the proof of service and declaration of diligence do not support a finding that substituted service was valid.

On this record, Plaintiffs have not carried their burden to establish valid service. In light of this conclusion, the Court does not reach Defendant's remaining arguments, including whether the Judicial Council constituted Defendant's usual place of business while she worked remotely or whether relief is available under CCP section 473.5.

Defendant submits the motion to quash service of summons as the proposed responsive pleading in support of her motion to set aside the default and default judgment. (CCP § 473.5, subd. (b).) Because Defendant's motion to set aside and motion to quash are both predicated on the same asserted lack of personal jurisdiction, the court sees no reason to defer consideration of the motion to quash.

Service Under CCP §§ 415.30 and 415.50

Defendant states that she would have "reviewed [a proposed stipulation] and responded promptly" had one been received. The record reflects that the proposed stipulation was attached to Plaintiff's opposition papers, but no agreement followed.

Under CCP section 415.30, a plaintiff may serve a defendant by notice and acknowledgment of receipt. If the defendant fails to sign and return the acknowledgment within 20 days after it is mailed, the defendant becomes liable for the reasonable costs incurred by the plaintiff in effecting service by another authorized method, absent a showing of good cause. (CCP § 415.30, subd. (d).)

CCP section 415.50 separately authorizes service by publication upon a showing, by affidavit, that the defendant cannot with reasonable diligence be served by another method specified in Article 3 of the Code and that a cause of action exists against the defendant. (CCP § 415.50, subd. (a).)

Defendant's address of record is P.O. Box 23502, Oakland, California 94623. Defendant states in a declaration filed on December 8, 2025, that she regularly checks this address. (Volzhenina Reply Decl., ¶ 9.) Nothing in this order limits Plaintiffs' discretion to select any method of service authorized by statute. If Plaintiff elects to serve Defendant by notice and acknowledgment of receipt and the acknowledgment is not returned, the court will entertain an application for recovery of service costs pursuant to CCP section 415.30(d). Plaintiff may also seek leave to effect service by publication upon a proper showing.

Service of Documents

The court notes the parties' competing accusations regarding service of documents. The court admonishes all parties that all future service must comply with the CCP and the applicable rules of court.

Disposition

The motions are granted. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

4. 9:00 AM CASE NUMBER: C22-01911
CASE NAME: TYSHAUN BUTLER VS. HYATT HOTELS CORPORATION
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: HYATT HOTELS CORPORATION
TENTATIVE RULING:

Summary

Defendant Hyatt Hotels Corporation's Motion for Terminating Sanctions is **granted** as set forth below.

Background

Plaintiff Tyshaun Butler initiated this action on September 9, 2022, alleging personal injury resulting from a bedbug incident at Defendant's hotel property located at 2611 Contra Costa Blvd., Pleasant Hill, California. Defendant served discovery upon Plaintiff in the form of Form Interrogatories, Set One. Pursuant to a Court Order dated May 14, 2025, Plaintiff failed to provide verified responses to said discovery.

On September 15, 2025, Defendant Hyatt Hotels Corporation filed its Motion for Terminating Sanctions, pursuant to Cal. Code of Civil Procedure § 2023.030 ("Motion") The Motion is supported by a Notice of Motion, an Amended Notice filed September 19, 2025, a Memorandum of Points and Authorities, a Declaration of Counsel of Monica Castillo, and a proposed order. The grounds for the motion are Plaintiff's failure to serve a verified response to the discovery propounded by Defendant. The Motion is not opposed by Plaintiff Tyshaun Butler.

Analysis

A. Plaintiff's Status as a Self-Represented Litigant

The Court is cognizant that Plaintiff is proceeding in *propria persona*. However, the law is clear that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Consequently, self-represented litigants, like their represented counterparts, are bound by the procedural rules governing civil litigation. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (stating that "mere self-representation is not a ground for exceptionally lenient treatment" and procedural rules apply equally); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121

(holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.” The court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant. To the contrary, the Court’s prior orders established clear deadlines for compliance with discovery obligations, which Plaintiff willfully disregarded.

Plaintiff’s Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Motion for Terminating Sanctions is deemed a consent to the granting of the relief sought by Defendant.

Code of Civil Procedure § 2030.060 requires Plaintiff to serve responses to interrogatories within thirty (30) days of service. Where a party fails to serve a timely response, Section 2023(d)(3) allows the Court to impose “an order dismissing the action, or any part of the action, of that party.”

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Motion for Terminating Sanctions. It is therefore ordered that Defendant Hyatt Hotels Corporation’s Motion for Terminating Sanctions is **granted**. It is further ordered that this action is **dismissed** with prejudice. The Court will to execute the proposed order lodged by Defendant on September 15, 2025 and orders the Defendant to file a Judgment accordingly.

5. 9:00 AM CASE NUMBER: C23-01292
CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA
HEARING IN RE: JOINDER IN DEF'S MOTION TO COMPEL PATRICIA KUBICHEK'S DEPOSITION
FILED BY: YRUETA, MICHAEL
TENTATIVE RULING:

See Tentative Ruling for Line 20, below.

6. 9:00 AM CASE NUMBER: C23-01583

CASE NAME: S A VS. EARTH SEEDS LLC

***HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER GRANTING PLAINTIFF LEAVE TO AMEND TO ADD WONDERSCHOOL AS A DEFENDANT, OR IN ALT, FOR RELIEF UNDER CCP 473(B) FILED BY: WONDERSCHOOL, INC.**

TENTATIVE RULING:

Defendant Wonderschool, Inc.'s motion for reconsideration of the Court's ruling on Plaintiff S.A.'s motion for leave to amend is **granted**. The ruling in *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 constitutes new law and therefore reconsideration is proper. Having reconsidered the Plaintiff's motion for leave to amend, the Court **denies Plaintiff's motion for leave to amend**. As to the sanctions award, the Court finds that the sanctions award remains appropriate, but reduces the amount to adjust for the new ruling that arbitration has not been waived. Therefore, the Court now orders that the sanctions awarded to Plaintiff against Wonderschool are \$7,800. If Wonderschool has already paid these sanctions, Plaintiff shall return the difference within thirty days.

Reconsideration

Wonderschool asks this Court to reconsider its ruling giving Plaintiff leave to amend to add Wonderschool to this case under Code of Civil Procedure section 1008(a). A motion under section 1008(a) must be "based upon new or different facts, circumstances, or law". In addition, "[i]f a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code of Civil Procedure section 1008(c).)

In the Court's ruling on Plaintiff's motion for leave to amend, the Court stated that if the California Supreme Court (in *Hohenshelt*) finds that these sections are preempted, then Wonderschool may file a motion for reconsideration. That statement was not meant to exclude other possible reasons for reconsideration. Instead, that portion of the ruling was only meant to address one situation where reconsideration would be proper.

Hohenshelt v. Superior Court (2025) 18 Cal.5th 310 held that section 1281.98 is not preempted. However, the Court did change the current law in another significant way. Prior to *Hohenshelt*, the majority of court of appeal opinions found that the time limits for paying arbitration fees were strictly applied. (See, e.g. *Espinoza v. Superior Court* (2022) 83 Cal.App.5th 761.) These courts found that the failure to pay fees on time constituted a material breach and the reason for the late payment did not matter. *Hohenshelt* rejected such a strict approach. The Court explained that the intent behind these statutes was to deter bad actors, and "[n]othing in the legislative history suggests that the Legislature intended to penalize inadvertent or excusable delay". (*Id.* at 338.) The Court held that a party seeking arbitration can "avoid forfeiture of its right to arbitration by showing that the delay was excusable under section 473, Civil Code section 3275, or Civil Code section 1511, the background principles that generally apply to other contractual obligations." (*Id.* at 343.)

The Court has reviewed *Hohenshelt* and finds that, although it did not find preemption, its

interpretation of the relevant statutes provides a more flexible analysis than prior case law and as such, it counts as new law. Therefore, the Court must reconsider Plaintiff's motion for leave to amend applying the standard in *Hohenshelt*.

Plaintiff's Motion for Leave to Amend

The Court has reconsidered Plaintiff's motion for leave to amend by considering the original papers filed for and against the motion and also considering the papers filed for and against the motion for reconsideration.

Plaintiff filed this case, though his guardian ad litem, for injuries he experienced while attending Earth Seeds preschool. Plaintiff alleges that Wonderschool hosts an online marketplace where childcare centers can market their services to families. Initially, Plaintiff sued Wonderschool, but Wonderschool filed a motion to compel arbitration, which was granted. Plaintiff then dismissed Wonderschool without prejudice.

Plaintiff brings this motion arguing that Wonderschool did not timely pay its arbitration fees and that failure constitutes a material breach pursuant to Code of Civil Procedure section 1281.97. Plaintiff then seeks to add Wonderschool back to this case by seeking leave to amend his complaint. Finally, Plaintiff seeks sanctions under section 1281.99.

Material Breach of the Arbitration Agreement

Code of Civil Procedure section 1281.97 provides that in employment and consumer arbitration, the drafting party's failure to timely pay arbitration fees results in a material breach of the arbitration agreement and a waiver of the right to compel arbitration. The arbitration fees and costs must be "paid within 30 days after the due date". (Code of Civil Procedure § 1281.97(a)(1).) "The invoice shall be provided in its entirety, shall state the full amount owed and the date that payment is due, and shall be sent to all parties by the same means on the same day. To avoid delay... the arbitration provider shall issue all invoices to the parties as due upon receipt." (Code of Civil Procedure § 1281.97(a)(2).) Section 1281.98 requires the prompt payment of fees and costs during arbitration. In addition, the Court shall award sanctions against the drafting party. (Code of Civil Procedure § 1281.97(d).) Section 1281.99 requires the court to impose "a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney's fees and costs, incurred by the employee or consumer as a result of the material breach."

As discussed above, in deciding whether there was a waiver of the right to arbitration under section 1281.97, the Court should consider whether the failure to pay was intentional or inadvertent or excusable. Further, the Court may consider Code of Civil Procedure section 473, Civil Code section 3275, or Civil Code section 1511 when deciding whether there should be a forfeiture of any breach.

Where there is a failure to timely pay the arbitration fees, but such failure is not "strategic, willful, grossly negligent, or fraudulent" the Court should not find that arbitration has been waived.

(*Wilson v. TAP Worldwide LLC* (2025) 114 Cal.App.5th 1077, 1090.) But a “plaintiff would still be entitled to compensation for ‘any reasonable expenses incurred by the employee or consumer as a result of its failure to timely pay arbitration fees.’ (*Hohenshelt, supra*, 18 Cal.5th at pp. 339–340.)” (*Wilson, supra*, 114 Cal.App.5th at 1090.)

Here, Plaintiff mailed his arbitration demand to JAMS and to Wonderschool at 548 Market Street, PMB 92922 in San Francisco on October 17, 2024. (Singh dec. ex. C.) It was delivered on October 22, 2024. (Singh dec. ex. D.) JAMS sent out a notice of intent to initiate arbitration and included an invoice to Wonderschool for non-refundable filing fees. (Singh dec. ex. E.) It was emailed to Wonderschool attorney Taqi-Eddin and Plaintiff’s attorney on November 18, 2024. (Singh dec. ex. E.) JAMS sent a reminder email regarding the unpaid fees on December 2, 2024. (Singh dec. ex. F.) JAMS notified the parties that it had not received the fees on January 3, 2024. (Singh dec. ex. G.) Following a second invoice, Wonderschool sent payment for these fees to JAMS on February 12, 2025, and JAMS showed receipt on February 18, 2025. (Singh dec. ex. L; Cunningham dec. ex. J.)

Wonderschool did not pay the fees within 30 days of the November 18, 2024, invoice, which was served on both sides by email. The November 2024 invoice was emailed to attorney Taqi-Eddin at the same email address used in Wonderschool’s opposition papers. There is also no evidence that Taqi-Eddin did not receive the November 2024 invoice. Thus, the evidence shows that JAMS emailed both sides the invoice and Wonderschool did not pay the fees within 30 days.

Wonderschool argues that they thought they had an agreement with Plaintiff’s prior counsel not to pay the arbitration fees. (Cunningham reconsideration dec. ¶¶11-12; Cunningham reconsideration reply dec. ¶¶12-13.) There is no formal stipulation or email or other writing that shows such an agreement. Further, the declarations of Plaintiff’s attorneys dispute that there was an agreement. (Ramos dec. ¶4; Iskra dec. ¶¶9, 11-12; Singh reconsideration dec. ¶6.) The Court is not convinced that there was an agreement to delay payment of the arbitration fees. Therefore, Wonderschool did not timely pay the fees and as such has materially breached the agreement.

Having found a material breach of the arbitration agreement, the next question is whether the breach should result in a waiver of the right to arbitrate. Under *Hohenshelt* the Court should consider whether the failure to pay was a result of surprise, mistake, inadvertence or excusable neglect.

Here, Wonderschool sought to compel arbitration and was dismissed from this action on March 2, 2023. Plaintiff filed a demand for arbitration on October 3, 2024, about one and a half years later. (Cunningham reconsideration dec. ¶¶9-10.) The arbitration demand was served by Plaintiff’s prior counsel. Wonderschool’s attorney declares that she discussed the arbitration with Plaintiff’s prior counsel and “understood that there was an agreement to stand down on paying the nonrefundable arbitration fee until a decision was made about proceeding with arbitration.” (Cunningham reconsideration dec. ¶12.) This understanding is disputed by two lawyers at Plaintiff’s prior law firm. (Ramos dec; Iskra dec.) Wonderschool’s attorney goes on to explain that she learned that Plaintiff had obtained new counsel in December 2024 and she reached out to the new attorneys on January 3, 2025 to determine whether Plaintiff intended to proceed with arbitration. (Cunningham

reconsideration dec. ¶¶14-16.) Wonderschool's attorney continued to try to contact Plaintiff's new attorneys several times in January 2025 regarding the status of arbitration, but did not hear back. (Cunningham reconsideration dec. ¶¶17-20 and exhibits E and F.) Finally, Wonderschool sent the arbitration payment on February 12, 2025. (Cunningham reconsideration dec. ¶22.)

The Court finds that the evidence here does not show a strategic decision to avoid timely paying the arbitration fees. Rather, the evidence shows that Wonderschool's attorney was mistaken about the need to pay the arbitration fees by December 18, 2024. The mistaken belief was further compounded by Plaintiff switching attorneys in December 2024 and Wonderschool's attorney not being able to speak with Plaintiff's new attorney in January 2025, despite several attempts to do so. Overall, the evidence shows that Wonderschool's failure to timely pay the arbitration fees was a result of mistake or excusable neglect and as such, the Court finds that Wonderschool should not be required to forfeit their right to arbitration. Therefore, upon reconsideration, the Court denies Plaintiff's motion for leave to amend.

Other Arguments Against Motion for Leave to Amend

The Court has not changed its ruling on the remaining issues raised by Wonderschool in opposing the motion for leave to amend.

Wonderschool argues that without proper service the November invoice does not count. Wonderschool argues that they were not properly served with the arbitration demand because Plaintiff mailed it to the wrong address. Wonderschool argues that the Code of Civil Procedure governs service of process of a demand for arbitration since the terms of use do not address service. Here, Wonderschool's terms of use required Plaintiff to mail the arbitration demand to "Wonderschool at 548 Market Street, PMB 92922, San Francisco". (Cunningham dec. ex. O at p. 87.) The Court finds that Plaintiff complied with Wonderschool's terms of use by mailing the arbitration demand to the address required by Wonderschool. Thus, Wonderschool has not shown that they were not served with the arbitration demand by the time JAMS sent out the invoice in November 2024.

Wonderschool also argues that Plaintiff sent the demand to Wonderschool and not to its counsel. The arbitration agreement did not require Plaintiff to send a copy of the arbitration demand to Wonderschool's attorneys. Nor has Wonderschool explained why the California Rules of Court would apply to the JAMS arbitration proceedings. Therefore, this argument fails.

Finally, Wonderschool argues that arbitration has begun and therefore there can be no breach. The arbitrator cannot cure a missed or late payment under section 1281.97. (*Trujillo v. J-M Manufacturing Co., Inc.* (2024) 107 Cal.App.5th 56, 67; *Hohenshelt, supra*, 99 Cal.App.5th at 1325.) Since the Court finds a material breach by Wonderschool it does not matter that JAMS opened the arbitration.

Sanctions

Under section 1281.97(d) "If the employee or consumer proceeds with an action in a court of appropriate jurisdiction, the court shall impose sanctions on the drafting party in accordance

with Section 1281.99.” (Code of Civil Procedure §1281.99.)

Section 1281.99 states that “[t]he court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney’s fees and costs, incurred by the employee or consumer as a result of the material breach.” (Code of Civil Procedure § 1281.99(a).) Additional non-monetary sanctions can also be awarded. (Code of Civil Procedure § 1281.99(b).)

Previously, the Court found that attorney fees should be awarded under both sections 1281.97(d) and 1281.99(a). Upon reconsideration, the Court finds that section 1281.97(d) is no longer applicable. Still, there was a material breach of the arbitration agreement and therefore fees should be awarded under section 1281.99(a). Further, *Hohenshelt* explained that Civil Code section 3275 provides an excuse for a party who material breached the agreement provided that they make full compensation to the other party for any losses resulting from the delay. (*Hohenshelt, supra*, 18 Cal.5th at 333.) Therefore, the Court may still require Wonderschool to pay attorney fees as a monetary sanction for materially breaching the agreement under section 1281.99.

In the motion for leave to amend, Plaintiff’s counsel sought \$16,950 in fees and costs. Plaintiff spent \$250 in arbitration costs. Plaintiff’s counsel also declares that their reasonable hourly rate is \$650 and they spent 10 hours preparing the motion for leave to amend and 6 hours opposing the motion to compel and anticipate spending 2 more hours on the reply and preparing for the hearing. Wonderschool points out the fees would only be \$11,700 and with the arbitration costs included the total is \$11,950. The Court finds that the amount opposing the motion to compel and the \$250 in arbitration costs should no longer be included as sanctions. Therefore, the new amount of sanctions awarded against Wonderschool is \$7,800 (12 hours at \$650 per hour).

7. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Dillard Trucking, Inc.’s Motion for Summary Judgment (“MSJ”).

While the motion is captioned as one for “Summary Judgment, or in the alternative, Summary Adjudication,” the Notice and Points and Authorities make clear that the motion is one for summary judgment only. The Notice indicates that Defendant Dillard Trucking moves the “Court for an Order granting summary judgment in its favor and against Plaintiffs Kevin Humphrey and Dawn Humphrey (“Plaintiffs”).” In addition, both the Introduction and Conclusion of the Ps and As indicate that Defendant seeks an order granting “summary judgment” in its favor – not mentioning summary adjudication.

“A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of

motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) “The purpose of the notice requirement ‘is to cause the moving party to ‘sufficiently define the issues for the information and attention of the adverse party and the court.’” (*Ibid.*)

Given the above, the Court will treat this motion as a motion for summary judgment only.

Defendant’s MSJ is **denied** as set forth below.

Factual Allegations and Procedural Posture

This matter pertains to alleged contamination of Plaintiff’s Property due to the flow of hazardous materials from Defendant’s property during a substantial rainstorm on January 15-16, 2023. It is alleged that Defendant stored toxic and hazardous materials at their business located at 15031 Byron Highway, in Byron, California (“Dillard’s Property”). On the date of the rainstorm, toxic chemicals stored at Dillard’s Property were washed down the highway and into a drainage channel adjacent to Plaintiff’s Property. That drainage channel was improperly modified by non-moving Defendant Shahi which caused the contaminated water to overflow, flooding Plaintiff’s Property.

For illustrative purposes only, below is a picture showing the location of the Properties as well as a general idea of where the contaminated water allegedly travelled. The Dillard Property is to the left of the image:



As a result of the flooding, Plaintiff’s property, including the structures thereon and the soil, were contaminated with hazardous and toxic chemicals. The tenants renting the Plaintiff’s Property were displaced, and Plaintiff incurred significant costs to remediate the damage.

The operative First Amended Complaint alleges four causes of action based on the above: (1)

nuisance; (2) trespass; (3) negligence; and (4) injunctive relief.

Standard of Review

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Initial Consideration

Electronic Bookmarks

Plaintiff’s Exhibits in Support of Opposition are 52 pages long and include 18 exhibits (A-R) but fails to include bookmarks to each of the exhibits. “[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The document includes three bookmarks to three pages in Exhibit B – but no other exhibits. Counsel is reminded to comply with the Rules of Court going forward.

Deposition Transcripts

When a deposition is used as an exhibit, “the exhibit must contain only the relevant pages of the transcript.” (Cal. R. Ct. 3.1116 (b).) In addition, the “relevant portion of any testimony in the deposition **must be marked** in a manner that calls attention to the testimony.” (Cal. R. Ct. 3.1116 (c) emphasis added.) Normally, this is done by either highlighting or bracketing the lines being cited to in the Memorandum and/or Separate Statement.

In Reply, Defendant submits the entirety of the 66-page deposition transcript of Melissa Roach, including the 10-page word index. Defendant failed to highlight any portion thereof. In addition, Defendant fails to specifically cite to any portion of the transcript in its Reply papers. This does not aid the Court since Defendant does not direct the Court to the portions of the transcript which Defendant considers important. The Court is not inclined to read the entirety of the transcript to attempt to

determine the relevant portions thereof. (*Hollywood Screentest of America, Inc. v. NBC Universal, Inc.* (2007) 151 Cal.App.4th 631, 644-45.)

Analysis

As noted above, the FAC includes four causes of action. Defendant Dillard does not address each of the claims separately, nor does it outline the elements of each claim. Instead, Defendant Dillard moves for summary judgment as to the entire complaint, arguing the Plaintiff cannot establish the requisite element of causation as to any of the asserted causes of action.

As Defendant Dillard addresses the complaint as a whole and only directs its arguments toward the Plaintiff's alleged failure to be able to establish causation, the Court will only address that issue.

"[C]ausation ... is ordinarily a question of fact which cannot be resolved by summary judgment. The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion.'" (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 212 quoting *Kurinij v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864.)

In California, summary judgment law no longer requires "a defendant moving for summary judgment to conclusively negate an element of the plaintiff's cause of action." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) "All that defendant need do is to 'show[] that one or more elements of the cause of action ... cannot be established' by the plaintiff." (*Ibid.*) In other words, there are now two ways for a defendant to prevail on a motion for summary judgment. First, the "defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action." (*Id.* at 855.) "The defendant may also present evidence that the plaintiff does not possess, and **cannot reasonably obtain**, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.*)

Defendant indicates that it is not attempting to 'conclusively negate' an element of plaintiffs' causes of action. (MSJ at 6:24-26.) This is supported by the fact that Defendant's own expert declaration allows for the possibility that the contamination at Plaintiffs' Property, which consists of petroleum hydrocarbons, could "possibly" come from Defendant Dillard's Property. (Wespestad Decl. ¶ 7.) Instead, it appears that Defendant is arguing that Plaintiffs do not possess, and cannot reasonably obtain, needed evidence to prove their claims.

Defendant presents the declaration of Melissa Roach, its Vice President and CFO, which indicates that the only materials stored by Dillard's are 10-15 gallon supplies of 10W-40 motor oil ("Motor Oil") and that on the date of the incident they did not have any Motor Oil stored at the Property. (Roach Decl. ¶ 8.) Instead, Defendant was still waiting for a new delivery due to the storms. (*Id.* ¶ 9.) She does note that there was a 'single one-gallon catch pan that was partially filled with motor oil.' (*Ibid.*) As they were not storing Motor Oil at the time, Defendant argues it could not have been the source of the contamination of Plaintiff's Property.

Defendant Dillard indicates that it propounded discovery requesting all facts and documents that supported Plaintiffs' various causes of action. Generally, the responses reiterate the general allegations of the operative complaint – indicating that Dillard stored 'toxic chemicals and other waste materials' on its property and that those 'toxic chemicals and other waste materials' made their way

to Plaintiffs' Property. (See e.g. Response to Special Interrogatories 1, 3, 4, 6, 7, 9.) The only document identified is the incident report attached to the operative complaint. (*Ibid.*) Defendant argues that these discovery responses show that Plaintiff has been unable to obtain any admissible evidence to support their claims.

It appears, however, that along with these written discovery responses Plaintiff also produced documents in response to requests from Defendant. These documents include the Healthy Building Soil and Well Water Sampling Report ("Health Report") as well as the Contra Costa Health Services Complaint, Incident, and Notification Report Form ("Incident Report") and Invoice Request Form ("Invoice"). There is also an Inspection Cover Sheet from that date outlining some of the issues spotted that day.

The Incident Report includes information related to the dispatch of the Contra Costa Health Services Hazardous Materials Programs ("Hazmat") to Defendant's Property on January 16, 2023 – the date of the incident. It indicates that Hazmat responded to reports of an oil release from Dillard's and that oil was observed releasing from Dillard's Property into the storm drain system. It also states that Hazmat transported two 55-gallon drums "of oily contaminated debris" from the Property. The Invoice attached thereto indicates that Dillard's was billed just over \$8,000 for Hazmat's response and reiterates that the basis for the Invoice was due to responding to a report of a release of oil from Dillard's. (It appears the Invoice is being disputed, but that fact does not change the analysis as the fact of being charged for Hazmat's actions is not relevant to the underlying issues.)

The Incident Report appears to provide additional context as to the events of the day. While Ms. Roach's declaration indicates that Dillard's was not storing Motor Oil on the date in question, it appears that there were other containers and/or items which may have been part of or contributed to the reported 'oil release' – including other drums of 'oily contaminated debris.' For example, the Inspection Cover Sheet indicates that there was used oil observed on the top of a drum, and in secondary containment and on an oil draining caddy. While the 10-15-gallon supplies of Motor Oil may have been empty, it appears there were other possible sources of the oil found leaking into the drainage system.

It is worth noting that Defendant objects to the admissibility of the Incident Report, Invoice, and Inspection Cover Sheet – and the Court is sustaining those objections. (See Evidentiary Objections below.) The documents are not admissible in the manner presented by Plaintiff in the current context. This may support Defendant's argument that Plaintiffs do not possess any admissible evidence to support their claims. However, it does not go so far as to establish that plaintiff "cannot reasonably obtain" admissible evidence to support their claims.

For example, while the documents are not authenticated, Plaintiff can call the person(s) that prepared them to authenticate them at trial. As to the hearsay objections, calling the witnesses identified in the documents to testify firsthand as to what they saw that day would cure any such objections. Evidence may be considered on a motion for summary judgment "if it is reasonably possible the evidence ... will be admissible at trial." (*Sweetwater Union High School Dist. V. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947 [in context of anti-SLAPP]; *Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 541-42.) The above documents indicate that there is evidence that may support Plaintiffs' claims which may be

admissible at trial – even if Plaintiff has not obtained that evidence at this time.

A similar argument can be made with respect to the Health Report. The Health Report indicates that soil samples were taken at several locations on Plaintiffs' Property. Samples were also taken from the water well on the Property. The samples were tested for the presence of gas, motor oil, diesel, and BTEX. As noted by Defendant's expert, while the Health Report indicates that the soil samples do not indicate that 'unacceptable' levels of those compounds (many of which indicated that 'none detected'), the Well Water Results do indicate that the samples contained levels above the 'maximum contaminant levels in the context of risk to human health according to the SF Bay Regional Water Quality Control Board.'

Defendant's expert opines that the failure to explain the precise collection method for the well water undermines the credibility of the Report. Having the person(s) that performed the tests and prepared the report testify will allow the parties to explore the propriety of the testing and results thereof. As for the argument that Plaintiff cannot prove that the chemicals that were found to be present in the water well did not come from Defendant's Property, Defendant's own expert concedes that the source of the "petroleum hydrocarbons" may have come from several locations, including "possibly Dillard's Property." (Wespestad Decl. ¶ 7.) While Plaintiff still has the burden of proof at trial that that some of the chemicals did indeed come from Defendant's Property – Defendant has failed to show as a matter of law that they definitively did not come from Defendant's Property.

The Court does not express any opinions as to Plaintiff's ability to obtain the admissible evidence prior to trial, or their ability to actually get such evidence admitted at trial. However, with respect to the motion for summary judgment, Defendant has failed meet its burden to show that Plaintiffs "cannot reasonably obtain" admissible evidence to support their claims.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Objections to Kevin Humphry Declaration and Exhibits attached thereto:

Objection 1: Overruled.

Objection 2: Overruled.

Objection 3: Sustained (Evid. Code §§ 403, 1200, 702.)

Objection 4: Sustained (Evid. Code §§ 403, 702.)

Objection 5: Sustained (Evid. Code §§ 403, 702.)

Objection 6: Sustained (Evid. Code §§ 1200, 403.)

Objection 7: Overruled.

Objection 8: Sustained (Evid. Code §§ 403, 1200, 1400-1401,

Objection 9: Sustained (Evid. Code §§ 403, 702)

Objection 10: Sustained (Evid. Code §§403.)

Objection 11: Sustained (Evid. Code §§ 403, 1200, 1520-22.)

Objection 12: Sustained (Evid. Code §§ 403, 1200, 1520-22.)

Objection 13-25: Sustained (403, 1400-1401.)

Objections to Douglas B. Flett Declaration:

Objection 26: Overruled.

Objection 27: Overruled.

Objection 28: Overruled.

Objection 29: Sustained (Evid. Code §§ 403, 702, *Hayman v. Block* (1986) 176 Cal.App.3d 629, 638-39.)

Objection 30: Overruled.

Objection 31: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 32: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 33: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 34: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection to Mark L. Mosley Declaration and Exhibits thereto:

Objection 35: Overruled.

Objection 36: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 37: Overruled.

Objection 38-40: Sustained (Evid Code §§ 403, 1200, 1400-1401.)

8. 9:00 AM CASE NUMBER: C23-02480

CASE NAME: ROWENA ESTILLORE VS. CAPGEMINI AMERICA INC.

***MOTION/PETITION TO COMPEL ARBITRATION CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: CAPGEMINI AMERICA INC.**

TENTATIVE RULING:

Summary

Defendant Capgemini America, Inc.'s ("Defendant") Petition to Confirm Arbitration Award is **granted**. No appearance is required at the hearing on December 17, 2025.

Background

In this case, Plaintiff Rowena Estillore ("Plaintiff") alleges claims for discrimination, harassment, retaliation, unpaid wages, fraud, wrongful termination, intentional tort, and intentional and negligent misrepresentation. Each of these claims arises out of her employment with Defendant Capgemini America, Inc. Plaintiff was as a software engineer for Defendant.

This case was removed to the United States District Court, Northern District, California from Contra Costa Superior Court on November 10, 2023. On January 26, 2025, the Hon. James Donato entered an Order re Arbitration in *Rowena Estillore v. Capgemini America Inc.*, USDC Case No. 3:23-cv-05816-JD. The Order entered by the Court specifies that this case is dismissed after the granting of Defendant's Motion for Summary Judgment by the arbitrator, Hon. Victor E. Bianchini (Ret.).(See Attachment 8(c)- Award of Arbitrator)

On August 29, 2025, Defendant filed a Petition to Confirm Contractual Arbitration Award. The Petition

was supported by a Notice, Declaration of Ryan McCoy, and a proposed order. The Petition is not opposed by Plaintiff.

Analyses

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Petition to Confirm Arbitration Award is deemed to be her consent to the relief sought by the Petition.

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Petition to Confirm Arbitration Award. The Petition is **granted**. The Court will execute the proposed order lodged by Defendant on September 16, 2025 and orders the Defendant to file a Judgment accordingly.

9. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Before the Court is all the captioned Defendants’ Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff’s FAC for seven causes of action for employment-related claims revolving around sexual batter and negligence.

For the following reasons, **Defendants’ Demurrer is sustained in its entirety with leave to amend.**

Meet and Confer Requirement

Defendants failed to satisfy their meet and confer requirements regarding their Demurrers and Motions to Strike. Defendants’ Counsel explained that their meet and confer effort with Plaintiff’s counsel consisted of one email meet and confer email sent on August 18, 2025. (Feenberg Decl. ¶ 2.) This effort is not statutorily complaint and is simply not enough.

This does not satisfy the requirements of Code of Civil Procedures section 430.41, as counsel never met and conferred with Plaintiff’s counsel in person, by telephone, or by video conference. (CCP § 430.41(a).)

The expected cooperation between the Parties is the breath that gives life to the meet and confer

process. The Court expects that the Parties will work cooperatively together to move this case along expeditiously going forward.

Statement of Facts

As alleged by Plaintiff, she was employed by Party Pros beginning in 2012, when she was a minor. (FAC ¶ 1.) At some point during her employment with Party Pros, Defendant Spencer "provided alcohol to Plaintiff and sexually assaulted Plaintiff, then a minor, while taking her along to work events pursuant to his employment with Defendants." (FAC ¶ 13.) After Plaintiff reported Mr. Spencer's misconduct to Defendant McMichael, Plaintiff was removed from events with Mr. Spencer. (FAC ¶ 15.) Mr. McMichael then took Plaintiff on work events and provided her with alcohol. (Id.)

At some point while Plaintiff was still a minor, Plaintiff engaged in a romantic relationship with Mr. McMichael. (FAC ¶ 16.) The relationship persisted after Plaintiff reached the age of majority. (FAC ¶ 17.) At some point, the relationship ended, and Plaintiff obtained a restraining order against Mr. McMichael due to his alleged harassment and threats against her. (FAC ¶ 18.) In November 2024, Plaintiff reported Mr. Spencer's conduct to Party Pros during a meeting where she reported Mr. Spencer's unsolicited sexual advances and sexual assaults to her supervisors. (FAC ¶ 19.) Plaintiff also advised Party Pros that other minor female employees had been sexually assaulted or subjected to unsolicited sexual advancements by Mr. Spencer. (FAC ¶ 20.) In response, Party Pros did not sever ties with Mr. Spencer. (FAC ¶ 21.) Plaintiff experienced severe emotional distress due to Mr. Spencer's sexual assaults, Mr. McMichael's improper relationship with her, and became an alcoholic as a result. (FAC ¶ 22.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Applicability of Workers' Compensation Exclusivity Exceptions

Defendants argue that all of Plaintiff's claims are preempted by the workers' compensation exclusivity doctrine. Workers' compensation provides the exclusive remedies for an employee's claims where the alleged wrongful conduct occurs at the worksite, in the normal course of the employer/employee relationship. (*Miklosy v. Regents of the University of California* (2008) 44 Cal. 4th 876, 902 ["Even if

such conduct may be characterized as intentional, unfair or outrageous, it is nevertheless covered by the workers' compensation exclusivity provisions."].) However, there are exceptions.

Civil actions are allowed where it is alleged the work-related injury was concealed, worsening the injury to the claimant or Plaintiff, in which case the employer's liability shall be limited to those damages proximately caused by the aggravation. (*Johns-Manville Products Corp. v. Superior Court* (1980) 27 Cal.3d 465, 469; See also Lab. Code § 3602(b)(2).) Labor Code section 3602(b)(1) provides that civil actions are permitted where the employer commits or ratifies a willful physical assault.

Here, Plaintiff argues she has pleaded allegations for both exceptions. Plaintiff alleges that Defendants TYRONE SPENCER and PATRICK MCMICHAEL sexually assaulted her. (FAC ¶¶ 12-18.) Plaintiff alleges that such conduct was concealed. (FAC ¶¶ 58-60.)

The Court takes the position that the FAC is so fact deficient that the Court does not have enough information to rule on whether the exceptions apply. This is a common and reoccurring theme throughout this analysis.

Plaintiff's General Allegations

When considering Plaintiff's factual allegations in the general allegations section of her FAC, the Court finds that all of Plaintiff's allegations regarding the sexual battery and battery claims are conclusory. (FAC ¶¶ 13, 16, 18.) Plaintiff does not provide any factual context to what her allegations of sexual assaulting, harassing, and grooming took place. (Id.)

Plaintiff's Battery and Sexual Battery Claims (Causes 1 and 2)

"A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a 'harmful or offensive' contact and the batteree suffer a 'sexually offensive contact.' Moreover, the section is interpreted to require that the batteree did not consent to the contact." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225 [internal citation omitted].)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Here, Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about. Plaintiff merely provides conclusory statements that she was sexually assaulted, harassed, and groomed. (FAC ¶¶ 13, 16, 18.) These allegations fail to state a cause of action for relief and fails to put Defendants on notice of what actions are subject to Plaintiff's complaints.

Plaintiff's Negligence Claims (Cause 3)

Plaintiff alleges Defendants Spencer and McMichael breached duties to Plaintiff "in their respective supervisory and management roles ... by grooming Plaintiff. providing her alcohol. subjecting her to sexual assault and manipulating her innocence.- (FAC ¶ 37.) These claims fail as to Mr. Spencer, Mr. McMichael and all other Defendants because they are derivative of the inadequately alleged claims for battery and sexual battery as discussed above.

Plaintiff's Negligent Hiring/Supervision Claim (Cause 4)

To establish such a claim, a plaintiff must "plead that she suffered a certain harm, that this harm was substantially caused by the defendant's employee, and that this harm would not have occurred if the

defendant had properly vetted, supervised, or retained the employee.” (*Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2016) 246 Cal. App. 4th 566, 591.) The tort’s intent is to punish defendants who knew, or should have known, of their employee’s propensity to commit the harm in question but failed to take reasonable steps to prevent the harm from occurring to the plaintiff. (*Id.*)

First, there are no facts alleged to show that Party Pros knew or should have known that Messrs. Spencer or McMichael were unfit or had a propensity to commit the harm alleged by Plaintiff before hiring them. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 843 [liability for negligent hiring requires employer to know or have reason to know employee is unfit]; *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1055 [“the cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way.”].)

Second, there are facts that Plaintiff did alert Defendants about the alleged wrongful conduct of Defendants Spencer and McMichael such as notifying McMichael about Spencer’s actions and notifying all Defendants about Spencer’s conduct towards Plaintiff and towards other women during a November 2024 meeting. (FAC ¶¶ 14-15, 19-21.) The Court cannot determine Defendants’ culpability for negligent hiring or supervision or Defendants sufficiency of their response of Plaintiff’s notification Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about and therefore the Court cannot decide if the actions taken by Defendants in response to the Plaintiff’s notification were reasonable.

Plaintiff’s IIED and NIED Claims (Causes 5 & 6)

To state a claim or intentional infliction of emotional distress, a plaintiff must plead facts reflecting extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing, severe emotional suffering. (*Hughes v. Pair* (2009) 46 Cal.4th 1035). For conduct to be “outrageous” it must be “so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) The defendant also must have engaged in “conduct intended to inflict injury or engaged in with the realization that injury will result.” (*Christensen*, 54 Cal.3d at 903; see also, *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, 165 fn. 5 [conduct must be of the type “especially calculated to cause, and does cause, mental distress of a very serious kind”].)

Negligent infliction of emotional distress is not an independent tort, rather it is a species of negligence, and has the same elements. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984.) “To recover damages for emotional distress on a claim of negligence where there is no accompanying personal, physical injury, the plaintiff must show that the emotional distress was ‘serious.’ [Citations.]” (*Wong v. Jin* (2010) 189 Cal.App.4th 1354, 1377.) “ ‘Serious mental distress may be found where a reasonable man, normally constituted, would be unable to adequately cope with the mental stress engendered by the circumstances of the case.’ [Citation.]” (*Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal.3d 916, 928.) “Damages for emotional distress are permitted only where the injury is serious and there is some means for assuring the genuineness of the claim. [Citation.]” (*Mercado v. Leong* (1996) 43 Cal.App.4th 317, 326.)

Because Plaintiff fails to factually describe the harmful or offensive touching that she is complaining about, the Court is unable to analyze whether the Defendants’ conduct was extreme or outrageous, or whether the conduct was intentional or negligent. Plaintiff also failed to factually describe the nature and extent of her emotional suffering furthering limiting the Court to analyze whether the emotional suffering element would be met in either of Plaintiff’s claims for IIED or NIED.

Plaintiff's Negligence Per Se Claim (Cause 7)

Negligence per se requires: (1) a defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused injury; (3) the injury resulted from an occurrence the enactment was designed to prevent; and (4) the plaintiff was a member of the class of persons the statute was intended to protect. (*Ramirez v. Nelson* (2008) 44 Cal. 4th 908, 917-18.) The first two elements are questions of fact, while the latter two are questions of law. (*Galvez v. Frields* (2001) 88 Cal.App.4th 1410, 1420.)

Plaintiff states that all Defendants had a statutory legal duty under California Penal Code 11164 et seq, to report "known or suspected child abuse or neglect." (FAC ¶ 58.) Penal Code section 11165.7 defines as a "mandated reporter" a series of occupations and positions that require mandatory reporting. Penal Code section 11165.7, subsection (49) states that "An adult person whose duties require direct contact with and supervision of minors in the performance of the minors' duties in the workplace of a business [...] is a mandated reporter of sexual abuse." Under Penal Code section 11166, "a mandated report shall make a report [...] whenever the mandated reporter [...] has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect."

Plaintiff has failed to state a claim for violation of this statute because the FAC does not allege facts that any of the conduct defined as "child abuse or neglect," including "sexual abuse" or "sexual assault" as defined in section 11165.1, ever occurred. Plaintiff's conclusory references to Defendant Spencer having "sexually assaulted" her do not suffice to show conduct which (if disclosed or observed by an individual with a duty to report) triggers the mandatory reporting requirement. Plaintiff's conclusory references to Defendant McMichael "grooming" her suffers the same fate.

Plaintiff does not allege that she was a child at the time she made either of these disclosures, and she does not allege that any individuals at Party Pros were otherwise aware of, or observed the alleged abuse of Plaintiff, at any time prior to these disclosures. Thus, the FAC does not allege facts indicating that a duty to report ever arose by any individual at Party Pros. To the extent Plaintiff intends to assert that Mr. Spencer and Mr. McMichael each violated this statute by failing to report their own alleged abuse of Plaintiff while she was a minor, the claim fails because such conduct does not satisfy the element of a negligence per se claim which requires that the injury result from an occurrence the statute was designed to prevent. Construing the reporting statute to require perpetrators of abuse to self-report would conflict with Fifth Amendment rights against self-incrimination. (*Kassey S. v. City of Turlock* (2013) 212 Cal. App. 4th 1276, 1280).

Plaintiff does not allege her age or Defendant McMichael's age at the time she entered a relationship with him. Plaintiff fails to allege facts that would constitute as "sexual abuse" under subsection (d) of Penal Code section 261.5, as required by the statute for an otherwise consensual relationship to constitute sexual abuse which must be reported.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in its entirety with leave to amend.**

10. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Defendants The Party Pros Disc Jockey and Event Services, Inc., a California corporation. doing business as Denon & Doyle (also sued incorrectly herein as Denon & Doyle, and Party pros) (defined herein as the "Company" or "Party Pros"); Tyrone Spencer, an individual; Brian Doyle, an individual; Susan Doyle, an individual; and Patrick McMichael, an individual (collectively, Defendants) move the court for an order striking the following allegations from Plaintiff s First Amended Complaint ("FAC"):

1. Paragraphs 28.34.41,47,51,52,56, and 62, seeking punitive damages.
2. The request for punitive damages made at item 3 in the prayer for relief.
3. The request for attorney's fees made at item 5 in the prayer for relief.

As explained below, **Defendants' Motion to Strike is granted with leave to amend.**

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion, as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Punitive Damages

Civil Code § 3294, which requires clear and convincing evidence that a defendant acted "willfully, maliciously, oppressively, and despicably" or with a conscious disregard of Plaintiff's rights.

Plaintiff in her opposition generally points to her conclusory statements in the FAC that Plaintiff was sexually assaulted and that Defendants Spencer and McMichael's conduct was malicious and oppressive. (Oppo at pp.4-6.) This is not enough to establish punitive damages.

Plaintiff's punitive damages requests are insufficient because she may not justify them simply by

echoing the language of § 3294. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864,872 [conclusory language describing defendant's conduct as intentional, willful and fraudulent is insufficient statement of oppression. fraud or malice within the meaning of section 3294]; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-42 [Insufficient facts to support claim for punitive damages where the sole basis was conclusory allegations characterizing defendants' conduct as intentional, willful, and fraudulent].)

Attorney's Fees

California generally follows what is commonly referred to as the "American Rule," which provides that each party to a lawsuit must ordinarily pay his or her own attorney fees. (See, e.g., *Trope v. Katz* (1995) 11 Cal.4th 274, 278.) The American Rule is codified in Code of Civil Procedure section 1021, which states in relevant part: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties" (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.)

"Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived and pass it without consideration." (*People v. Stanley* (1995) 10 Cal.4th 764, 793.) Defendants argue that there is no such agreement that requests attorney's fees. (MTS at p. 7: 7-8.) Plaintiff does not argue this point in her opposition. (See *Oppo* generally.) The Court will treat Plaintiff's failure to argue this point as a Plaintiff conceding this point.

Conclusion

For the reasons analyzed above, **Defendants' Motion to Strike is granted with leave to amend.**

11. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Before the Court is Defendant Contra Costa County ("Defendant" or "County")'s demurrer to Plaintiff Valentina Hoeven ("Plaintiff" or "Hoeven")'s First Amended Complaint for (1) Retaliation in Violation of FEHA (Government Code § 12940, et seq.); (2) Retaliation in Violation of Labor Code § 1102.5; (3) Gender/Sex Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (4) National Origin Discrimination in Violation of FEHA (Cal. Gov. Code § 12940, et seq.); (5) Disability Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (6) Failure to Engage in Good Faith Interactive Process in Violation of FEHA (Government Code § 12940, et seq.); (7) Failure to Provide Reasonable Accommodations in Violation of FEHA (Government Code § 12940, et seq.); (8) Pregnancy Discrimination in Violation of PDL (Government Code § 12945, et seq.); (9) Failure to Reasonably Accommodate Pregnancy-Related Conditions in Violation of PDL (Government Code § 12945, et seq.); and (10) Failure to Prevent Discrimination and Harassment in Violation of FEHA (Government Code § 12940, et seq.)

Defendant demurs to Plaintiffs' FAC on the grounds that she has not stated any claims for relief.

For the following reasons, the Demurrer is **sustained-in-part** and **overruled-in-part** as described further, below.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

As a threshold issue, Defendant argues that the First Amended Complaint violates the sham pleading doctrine.

“‘Generally, after an amended pleading has been filed, courts will disregard the original pleading. [Citation.] [¶] However, an exception to this rule is found ... where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them. The court may examine the prior complaint to ascertain whether the amended complaint is merely a sham.’ [Citation.] ... Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations. [Citation.] Accordingly, a court is ‘not bound to accept as true allegations contrary to factual allegations in former pleading in the same case.’ [Citation.]” (*Vallejo Development Co. v. Beck Development Co.* (1994) 24 Cal.App.4th 929, 946; see *State of California ex rel. Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412 [“‘[u]nder the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment’”].)

“The sham pleading doctrine is not “‘intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts.’” [Citation.] Instead, it is intended to enable courts “‘to prevent an abuse of process.’” [Citation.]” (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 426; see *Amid v. Hawthorne Community Medical Group, Inc.* (1989) 212 Cal.App.3d 1383, 1391 [“‘A court has inherent power by summary means to prevent an abuse of its process and peremptorily to dispose of sham causes of action’”].) Plaintiffs therefore may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings. (*CCC Information Services*, supra, 149 Cal.App.4th at p. 412; *Vallejo Development*, supra, 24 Cal.App.4th at p. 946.)

In response to Defendant’s argument, Plaintiff argues that she has not made inconsistent pleadings, but instead “eliminated five causes of action to streamline her complaint and eliminated facts that were not material to the remaining causes of action.” (Opp. at 8:5-7.)

The Court is inclined to agree with Plaintiff; in the absence of direct contradictions, even the deletion of “harmful allegations” as Defendant characterizes the omitted language, does not rise to the level of a sham. The Court cannot conclude that the allegations of the original complaint are in direct

contradiction with the amended complaint.

(1) Retaliation in Violation of FEHA (Government Code § 12940, et seq.);

The first cause of action alleges retaliation in violation of the FEHA under Government Code section 12940(h), which prohibits an employer from discharging or otherwise discriminating against an employee because the employee has engaged in protected activity. To state a claim for retaliation, a plaintiff must plead that she engaged in protected activity, that she suffered an adverse employment action, and that there is a causal connection between the protected activity and the adverse action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

“An ‘adverse employment action,’ which is a critical component of a retaliation claim, requires a substantial adverse change in the terms and conditions of the plaintiff’s employment.” (*Holmes v. Petrovich Development Co., LLC* (2011) 191 Cal.App.4th 1047, 1063, quotation marks omitted.)

“Appropriately viewed, this provision protects an employee against unlawful discrimination with respect not only to so-called “ultimate employment actions” such as termination or demotion, but also the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee’s job performance or opportunity for advancement in his or her career.” (*Yanowitz*, supra, 36 Cal.4th at pp. 1053-1054.) This standard is construed liberally — “although an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim.” (*Id.* at p. 1052.) “A schedule change in an employee’s work schedule may make little difference to many workers, but may matter enormously to a young mother with school-age children.” (*Burlington Northern and Santa Fe Ry. Co. v. White* (2006) 548 U.S. 53, 69.)

Defendant demurs to this cause of action on the grounds that “Plaintiff does not allege protected activity under FEHA.” (Demurrer at 6:18.) Defendant also argues that the FAC fails to allege a cognizable adverse employment action. (*Id.* at 6:28.)

In opposition, Plaintiff argues that requesting pregnancy accommodations is a protected activity (Opp. at 9:19-25 (citing FAC at ¶ 33 and *Yanowitz*, supra, at p. 1043) and that she has alleged several adverse employment actions including denial of light duty assignment and work-from-home accommodations.

Plaintiff has adequately alleged protected activity: she alleges that she told Lieutenant Sliger about her pregnancy and requested light duty based on her doctor’s recommendation. (FAC at ¶¶ 32, 33.) This is sufficient to allege protected activity at the pleading stage. While less clear, Plaintiff does appear to have adequately described retaliation for pleading purposes. She alleges that she requested to work from home to comply with a doctor’s recommendation that she not drive but that the County’s ADA Coordinator told her, “that the county had very strict guidelines about working from home, and that it would not be possible.” (FAC at ¶ 41.) Plaintiff alleges that she was assigned back to Court Security Unit which “was a full duty assignment without the possibility of any modifications.” (*Id.* at ¶ 42.) Ultimately, Plaintiff alleges that “Defendant made unreasonable return-to-work demands, failed to reinstate her to a comparable position, and created a hostile work environment, culminating in her constructive discharge on November 30, 2023.” (FAC at ¶ 47.)

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for Retaliation in

violation of FEHA. The Demurrer to this cause of action is **overruled**.

(2) Retaliation in Violation of Labor Code § 1102.5:

“To establish a prima facie case of retaliation, a plaintiff must show that she engaged in a protected activity, that she was thereafter subjected to adverse employment action by her employer, and there was a causal link between the two.” (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 614.)

Defendant demurs to this cause of action on similar grounds as above; Defendant contends that “Plaintiff has not alleged engagement in a protected activity under § 1102.5 ... [n]or has Plaintiff alleged that she suffered a qualifying adverse employment action” or “a causal relationship between any protected activity and any adverse employment action.” (Demurrer at 8:23-27.)

In opposition, Plaintiff argues that the FAC alleges she made a formal written request referencing the Pregnancy Workers Fairness Act (FAC at ¶ 38) and that she also raised her concerns to HR and the ADA coordinator (*id.* at ¶ 41), but she was removed from her position and placed on involuntary FMLA leave (*id.* at ¶¶ 42, 45.) Ultimately, the FAC alleges that “Defendant made unreasonable return-to-work demands, failed to reinstate her to a comparable position, and created a hostile work environment, culminating in her constructive discharge on November 30, 2023.” (FAC at ¶ 47.)

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for Retaliation in Violation of Labor Code § 1102.5. The Demurrer to this cause of action is **overruled**.

(3) Gender/Sex Discrimination in Violation of FEHA (Government Code § 12940, et seq.);
and

(4) National Origin Discrimination in Violation of FEHA (Cal. Gov. Code § 12940, et seq.);

Defendant demurs to Plaintiff’s causes of action for gender/sex as well as national origin discrimination under FEHA on the grounds that Plaintiff fails to allege she competently performed in her position, does not allege a qualifying adverse employment action nor a causal connection between such action and any discrimination based on Plaintiff’s status as a woman or a Russian national.

Government Code § 12940(a) prohibits an employer from discriminating based on sex, disability, and other protected characteristics “in compensation or in terms, conditions, or privileges of employment.” (Govt. Code § 12940(a); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 705.) Official actions by the employer of disparate treatment, or demoting or terminating an employee based on protected characteristics such as sex or race, constitute unlawful discrimination under FEHA. (*Roby, supra*, 47 Cal.4th 686 at 705, 708.)

Under the FEHA, a prima facie case of discrimination consists of the following elements: (1) the plaintiff is a member of a protected class, (2) the plaintiff was qualified for the position he or she sought or was performing competently in the position he or she held, (3) the plaintiff suffered an adverse employment action, and (4) some other circumstance suggesting discriminatory motive. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355.)

Defendant contends that Plaintiff fails to allege that she was performing competently in her position. Defendant argues that Plaintiff's own allegations establish that she was not competently performing her job and that "Plaintiff could not perform the basic functions of a sworn peace officer[.]" (Demurrer at 9:13.) While Plaintiff does allege several adverse actions taken against her including a reprimand for failing to respond to a scene, she attributes those to disparate treatment. (See FAC at ¶¶ 4, 30.)

That said, Plaintiff does not allege that prior to the alleged disparate treatment she was performing competently in her position. She alleges a single promotion from her hire date (FAC at ¶¶ 11, 12) but that is inadequate to establish the second element of a prima facie case of discrimination under FEHA.

Defendant's Demurrer to Plaintiff's third and fourth causes of action is **sustained**, with leave to amend.

(5) Disability Discrimination in Violation of FEHA (Government Code § 12940, et seq.);

Defendant demurs to Plaintiff's cause of action for disability discrimination on the grounds that Plaintiff fails to allege she was qualified to perform the essential functions of her position with or without accommodation.

In a claim for disability discrimination, the plaintiff must allege that she can perform the essential functions of her job with or without a reasonable accommodation. (See *Brundage v. Hahn* (1997) 57 Cal. App.4th 228, 236; *Deschene v. Pinole Point Steel* (1999) 76 Cal.App.4th 33, 44; and *Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 254.)

Here, the First Amended Complaint does not allege that Plaintiff was qualified to perform the essential duties of her position with or without reasonable accommodation, as required to allege a prima facie cause of action for disability discrimination. Defendant's Demurrer to Plaintiff's fifth cause of action is **sustained**, with leave to amend.

(6) Failure to Engage in Good Faith Interactive Process in Violation of FEHA (Government Code § 12940, et seq.);

"The FEHA makes it 'an unlawful employment practice ... [¶] ... [¶] [f]or an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.'" (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 971.) "Under FEHA, it is an unlawful practice for an employer to fail to engage in a good faith interactive process with the employee to determine an effective reasonable accommodation if an employee with a known physical disability requests one." (*Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092, 1109.)

Defendant demurs to this cause of action on the grounds that the FAC alleges there was an interactive process, and that she met with a Director of Personnel and Payroll and an ADA Coordinator as part of her discussions with the County about her alleged disability. (FAC ¶ 41.) Defendant further argues, relying on *Scotch v. Art Institute of Cal.*, that "a plaintiff may not double dip on her causes of action."

(Demurrer at 11:22-24 [citing *Scotch v. Art Institute of Cal.* (2009) 173 Cal.App.4th 986, 1003].)

Under *Scotch*, to state a claim for failure to engage in the interactive process, an employee “must identify a reasonable accommodation that was available at the time the interactive process should have occurred.” (*Scotch, supra*, 173 Cal.App.4th at pp. 994-995.)

“Although the interactive process is an informal process designed to identify a reasonable accommodation that will enable the employee to perform his or her job effectively, an employer’s failure to properly engage in the process is separate from the failure to reasonably accommodate an employee’s disability and gives rise to an independent cause of action.” (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal. App. 4th 954, 971, as modified on denial of reh’g (Dec. 23, 2014) [internal citations omitted].)

Here, Plaintiff alleges that she contacted her supervisors (including Lieutenant Sliger and Sergeant Chestnut) and requested accommodations including light duty and working from home based on her doctor’s recommendation. (FAC at ¶¶ 33-36.) Specifically with respect to her accommodation that she work from home based on her worsening pregnancy illnesses, she alleges that she wrote an email referencing the Pregnancy Workers Fairness Act (“PWFA”) but did not receive a response. (*Id.* at ¶ 38.) She alleges that she was reassigned back to Court Security Unit, “a fully duty assignment without the possibility of any modifications.” (*Id.* at ¶ 42.) She further alleges that she was placed on involuntary FMLA leave (*id.* at ¶ 45), excluded from vacation sign up for the following year (*id.* at ¶ 46), and constructively discharged on November 30, 2023. (*Id.* at ¶ 47.)

At this stage, the Court concludes that Plaintiff has adequately alleged failure to engage in good faith interactive process. The Demurrer to this cause of action is **overruled**.

- (7) Failure to Provide Reasonable Accommodations in Violation of FEHA (Government Code § 12940, et seq.); and
- (9) Failure to Reasonably Accommodate Pregnancy-Related Conditions in Violation of PDL (Government Code § 12945, et seq.); and

Defendant demurs to Plaintiff’s seventh cause of action for failure to provide reasonable accommodations in violation of FEHA and ninth cause of action for failure to reasonably accommodate pregnancy-related conditions in violation of Pregnancy Disability Leave on the same grounds: that Plaintiff fails to allege she was qualified to perform the essential functions of her position with accommodation, which is a required element of each cause of action.

“The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (*Scotch, supra*, 173 Cal. App. 4th at pp. 1009-1010.)

Pursuant to Government Code section 12940(m), it is unlawful for an employer “to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee.” (Gov. Code, § 12940(m).)

“Under section 12940, a woman disabled by pregnancy is entitled to the protections afforded any

other disabled employee—a reasonable accommodation that does not impose an undue hardship on her employer.” (*Sanchez v. Swissport, Inc.* (2013) 213 Cal. App. 4th 1331, 1339.)

For purposes of an alleged failure reasonably to accommodate a disability, a “plaintiff proves he or she is a qualified individual by establishing that he or she can perform the essential functions of the position to which reassignment is sought, rather than the essential functions of the existing position.” (*Cuiellette v. City of Los Angeles* (2011) 194 Cal. App. 4th 757, 767.) “If the employee fails to request an accommodation, the employer cannot be held liable for failing to provide one.” (*Spitzer v. The Good Guys, Inc.* (2000) 80 Cal. App. 4th 1376, 1384.)

As the Court noted with respect to Plaintiff’s disability discrimination claim, the First Amended Complaint does not allege that Plaintiff was qualified to perform the essential duties of her position. Defendant’s Demurrer to Plaintiff’s seventh and ninth causes of action is **sustained**, with leave to amend.

(8) Pregnancy Discrimination in Violation of PDL (Government Code § 12945, et seq.);

Defendant demurs to this cause of action on the grounds that Plaintiff has not alleged facts showing she was discriminated against based on her pregnancy, “i.e., that she experienced a qualifying adverse employment action due to anti-pregnancy animus.” (Demurrer at 12:28-13:1.)

“Pregnancy discrimination is a form of sex discrimination.” (*Sanchez v. Swissport, Inc.* (2013) 213 Cal. App. 4th 1331, 1340 [citing Govt. Code, § 12926(q)] [defining sex discrimination to encompass pregnancy discrimination]. “Being unable to work during pregnancy is a disability for the purposes of section 12940.” (*Id.* [citing Govt. Code, § 12926(1)] [defining “[p]hysical disability” as including any physiological condition that impairs a major life activity, such as working].)

Plaintiff alleges several adverse actions in support of her claim for pregnancy discrimination: that Defendant denied her requested accommodations, removed her from a light-duty position, placed her on involuntary FMLA leave, and constructively discharged her. (FAC ¶¶ 37, 41-47.) The FAC also suggests temporal proximity between Plaintiff’s pregnancy accommodation requests and the adverse actions, which can support an inference of discriminatory animus.

At this stage, the Court concludes Plaintiff has adequately alleged her cause of action for pregnancy discrimination. Defendant’s Demurrer to Plaintiff’s eighth cause of action is **overruled**.

(10) Failure to Prevent Discrimination and Harassment in Violation of FEHA (Government Code § 12940, et seq.)

Defendant demurs to Plaintiff’s tenth cause of action for failure to prevent discrimination on the grounds that Plaintiff fails to allege objectively abusive harassment and the allegations of the FAC are conclusory.

An employer is obligated “to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (Gov. Code, § 12940, subd. (k).) “When a plaintiff seeks to recover damages based on a claim of failure to prevent discrimination or harassment she must show three essential elements: 1) plaintiff was subjected to discrimination, harassment or retaliation; 2) defendant failed to take all reasonable steps to prevent discrimination, harassment or retaliation; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” (*Lelaind v. City and County of San*

Francisco (N.D. Cal. 2008) 576 F.Supp.2d 1079, 1103, quoted with omissions in *Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43-44.)

Because Plaintiff has failed to allege facts to state a claim for discrimination or harassment, Defendant's Demurrer is **sustained**, with leave to amend.

12. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

Defendant's demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff Paul Rapier alleges that he is a 50-year-old disabled African American male who was employed by Defendant Contra Costa School for the Performing Arts (CCSPA) for approximately seven months, beginning on or around October 10, 2023, as a Lead Custodian. According to the complaint, Rapier performed his job in an exemplary manner at all relevant times and received no negative performance reviews or disciplinary actions. (Complaint, ¶¶ 11-12.)

Rapier alleges that throughout his tenure, he was one of, if not the only, African American employee in the workplace and that he was treated less favorably than his non-African American counterparts. Specifically, he alleges that he was deprived of the same rights, benefits, and privileges as non-African American employees and that he was shunned, ostracized, and excluded by his non-African American coworkers. (Complaint, ¶ 13(a).)

Rapier further alleges that his minor son, who was a student at the same school where Rapier worked, was subjected to similar treatment. According to the complaint, Rapier's son, who was one of few African American students at the school, was frequently singled out, targeted, and falsely accused of engaging in misconduct. In or around November 2023, Rapier's son was allegedly falsely accused of hitting two female Caucasian students. (Complaint, ¶13.b.) Rapier alleges that his son vehemently denied the accusations and explained that he was not involved, but that his explanations were disregarded. Rapier characterizes this incident as reflective of a culture of animus toward African Americans. (*Ibid.*)

Upon learning of the accusations, Rapier alleges that he attempted to defend his son to an administration he contends was known to target people of color. Despite Rapier's status as a dedicated employee, Executive Director Catherine Foster (Foster), a Caucasian woman, allegedly disregarded Rapier's explanations and moved his son to a different class. (Complaint, ¶ 13.c.)

Several days later, Rapier alleges that he was notified that the parents of the two female students had filed a restraining order against his son. Rapier contested the matter in court in or around December 2023, and the restraining order was ultimately dismissed. Rapier alleges that despite the dismissal and the determination that his son had not engaged in the alleged conduct, Defendants continued to

target both Rapier and his son. (Complaint, ¶ 13.d.)

As a result of his son's treatment, Rapier alleges that he complained to Foster on multiple occasions about the discrimination his son experienced due to his race. He further alleges that Defendants' actions portrayed him as the antagonist while portraying the White students as victims, thereby leaving his son vulnerable to bullying and further racism. (Complaint, ¶ 13.d.) Rapier alleges that this treatment caused mental deterioration in his son, who became fearful of returning to school. Despite these concerns, Rapier alleges that Foster refused to intervene or address his complaints. (*Ibid.*)

In or around January 2024, Rapier alleges that he submitted a written complaint to the school board regarding the alleged discrimination and false allegations against his son, as well as Foster's refusal to address the issue. According to the complaint, no one from the school board responded, and no investigation was initiated. (Complaint, ¶ 13.f.)

Rapier further alleges that following his complaint, he became the target of retaliation. Specifically, he alleges that Foster and other administrators began to regularly speak to him in a condescending and unprofessional manner and that the retaliation became palpable after he complained. (Complaint, ¶ 13.g.)

In or around April 2024, Rapier alleges that after continuing to experience discrimination, harassment, and retaliation, he complained to Human Resources Coordinator Callie Trilia. According to the complaint, no action was taken in response. Rapier alleges that he then complained to Foster and Ferrera about his treatment, but instead of addressing his concerns, Foster began accusing him of misconduct. (Complaint, ¶ 13.h.)

On April 24, 2024, Rapier alleges that he notified his supervisor that he was leaving work early due to stress and anxiety resulting from the discrimination, harassment, and retaliation he continued to experience. He sought medical attention and was placed on medical leave through June 3, 2024. Rapier alleges that he submitted a doctor's note and applied for short-term disability benefits. (Complaint, ¶ 13.i.)

Despite being on approved medical leave, Rapier alleges that he continued to receive work-related emails from Human Resources. He further alleges that he complained to members of the school board but received no response. (Complaint, ¶ 13.j.)

Rapier alleges that on or around May 23, 2024, his physician extended his medical leave, and that he submitted the updated documentation to his supervisor and members of the school board. On or around June 3, 2024, his physician again extended the leave through August 23, 2024, and Rapier alleges that he notified the appropriate parties of each extension by email. (Complaint, ¶ 13.k.)

On or around June 3, 2024, Rapier alleges that he received a phone call from Human Resources informing him that his contract had been terminated due to a decision to transition to in-house services. (Complaint, ¶ 14.)

As a result of Defendants' conduct, Rapier alleges that he has suffered and will continue to suffer damages, including lost past and future income and employment benefits, damage to his career, lost wages, overtime, unpaid expenses, penalties, and interest, in an amount to be proven at trial. He further alleges non-economic damages, including psychological and emotional distress, humiliation, and mental and physical pain and anguish. (Complaint, ¶¶ 15-16.)

The complaint alleges that the conduct of Defendants Catherine Foster and Gerard Flaherty

constitutes oppression, fraud, and/or malice within the meaning of Civil Code section 3294, entitling him to punitive damages. (Complaint, ¶ 18.)

The complaint alleges the following causes of action based on these facts: (1) Discrimination in Violation of the Cal. Fair Employment & Housing Act, Govt. Code section 12900 et seq.) (FEHA); (2) Hostile Work Environment Harassment in Violation of the FEHA; (3) Retaliation in Violation of the FEHA; (4) Failure to Provide Reasonable Accommodation in Violation of the FEHA; (5) Failure to Engage in the Interactive Process in Violation of the FEHA; (6) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; (7) Whistleblower Retaliation in Violation of Labor Code section 1102.5; and (8) Intentional Infliction of Emotional Distress.

On September 5, 2025, Defendants CCSPA, Catherine Foster, and Gerard Flaherty filed a demurrer to the complaint pursuant to CCP section 430.10(e), as well as a motion to strike Plaintiff's request for punitive damages. In the demurrer, Defendants challenged the legal sufficiency of the second cause of action for hostile work environment harassment and the eighth cause of action for intentional infliction of emotional distress, and Defendant Flaherty additionally demurred to all causes of action asserted against him.

Prior to the hearing, the parties stipulated to the dismissal of the individual defendants and Plaintiff withdrew his request for punitive damages. As a result, the demurrer by the individual defendants and the motion to strike punitive damages are moot.

Plaintiff thereafter filed an opposition to the demurrer, and Defendant CCSPA filed a reply.

In light of the dismissals and withdrawal of punitive damages, the only issues remaining for determination on demurrer are whether Plaintiff has stated sufficient facts to support the second cause of action for hostile work environment harassment and the eighth cause of action for intentional infliction of emotional distress against Defendant CCSPA.

Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Second Cause of Action for Harassment

Defendant argues the second cause of action for hostile work environment harassment fails to state a cause of action. Defendant does not challenge the sufficiency of the allegations as to severity or pervasiveness but instead argues that Plaintiff fails to allege facts showing the alleged harassment was because of his race or disability.

The elements of a cause of action for harassment are (1) plaintiff belongs to a protected group; (2) plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's membership in the protected group; (4) the harassment was sufficiently severe or pervasive to alter

the conditions of employment and create an abusive working environment; and (5) respondeat superior liability. (See, e.g., *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Defendants argue that Plaintiff alleges he is a member of two protected classes, African American and disabled, but that none of the facts alleged constitute harassment based on Defendant argues that Plaintiff alleges he is a member of two protected classes, African American and disabled, but that none of the facts alleged constitute harassment based on either characteristic. Defendant contends that Plaintiff alleges only that after he made complaints regarding an incident involving his son, Ms. Foster and the Board ignored those complaints, that Foster and other administrators thereafter began speaking to Plaintiff in a condescending and unprofessional manner, and that Foster later accused Plaintiff of engaging in misconduct. According to Defendant, these allegations describe conduct occurring after Plaintiff complained about his son's treatment and are not alleged to be directed at, or related to, Plaintiff's race or disability. Defendant therefore contends the harassment claim cannot withstand demurrer.

Plaintiff responds that the allegations must be viewed through the lens of recent legislation recognizing that harassment claims are rarely appropriate for early disposition and that a single incident of harassing conduct may be sufficient to create a triable issue. (Gov. Code, § 12923, subds. (b)–(e); *Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 36.) Plaintiff further relies on *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, which recognizes that official employment actions may be considered as part of a harassment claim where they convey an offensive or hostile message to the employee. (*Id.* at p. 708.) Plaintiff then cites to *Reno v. Baird* (1998) 18 Cal.4th 640 and *Ortiz v. Dameron* (2019) 37 Cal.App.5th 568 to argue that a hostile work environment cause of action must be evaluated based on the totality of the circumstances and its viability is more appropriately resolved after factual development.

Having considered these arguments, Defendant's demurrer is overruled. As noted, defendant does not challenge the sufficiency of the allegations as to severity or pervasiveness, but instead argues Plaintiff fails to allege facts showing the alleged harassment was because of protected status. The complaint alleges contextual facts supporting an inference of racial animus, including that Plaintiff, an African American employee, complained to a Caucasian school administration about what he perceived to be race-based mistreatment of his African American son, a student at the same school, by the same administrators responsible for decisions affecting Plaintiff's employment. Plaintiff further alleges that both before and after the complaints, he experienced exclusion and hostility in the workplace, and that after the complaints he was subjected to condescending and unprofessional communications and accused of misconduct.

Liberally construed, these allegations support a reasonable inference that the challenged conduct was not race-neutral. Although Defendant argues the alleged conduct reflects retaliation only, the Court cannot resolve this issue on demurrer. Nothing in this ruling precludes Defendant from challenging Plaintiff's evidence supporting the harassment cause of action at a later stage of the proceedings.

Based on the foregoing, the demurrer to the second cause of action is **overruled**.

Eighth Cause of Action for Intentional Infliction of Emotional Distress

The elements of the tort of intentional infliction of emotional distress (IIED) are: (1) extreme and outrageous conduct by the defendant with intent to cause, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. Conduct is outrageous only when it exceeds all bounds of that usually

tolerated in a civilized community. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.) However, “personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Where personnel management decisions are improperly motivated, the remedy lies in a statutory discrimination claim rather than a tort claim for emotional distress. (*Ibid.*)

Plaintiff argues that because the same facts support his FEHA claims, they also support a “derivative” IIED claim. The Court disagrees. An IIED claim is subject to a higher pleading standard and conduct sufficient to alter working conditions under FEHA may still fall short of the extreme and outrageous conduct required for IIED.

The facts Plaintiff identifies in support of his IIED claim consist of allegations that he was treated unfairly, that his complaints were ignored, that supervisors spoke to him in a demeaning or unprofessional manner, that he was accused of misconduct, that Human Resources and the school board failed to respond, and that he received work-related emails while on medical leave. Even accepted as true, this does not exceed all bounds tolerated in a civilized society and therefore does not constitute extreme and outrageous conduct. Absent additional aggravating circumstances, such allegations may support statutory employment claims, but they are insufficient to state a claim for IIED.

Accordingly, the demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

Defendant’s demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

13. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
***HEARING ON MOTION IN RE: TO STRIKE PUNITIVE DAMAGE DEMAND**
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

The hearing on this Motion is vacated. (See Notice of Withdrawal of Motion filed 12/5/25.)

14. 9:00 AM CASE NUMBER: MSC21-01827

CASE NAME: FROES VS. ROC FUNDING GROUP

***HEARING ON MOTION IN RE: A NEW TRIAL**

FILED BY: ROC FUNDING GROUP, LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed Defendant ROC Funding Group's Motion for New Trial and Plaintiff Stella Froes' opposition. Counsel may appear at the hearing on this motion via Zoom or in-person. The Court intends to take this matter under submission and to issue a written ruling. The Court orders that the enforcement of Plaintiff's Judgment on the Special Verdict filed on October 15, 2025, is stayed pending a ruling on Defendant's motion.

15. 9:00 AM CASE NUMBER: MSL20-06032

CASE NAME: ROMON CALHOUN VS. RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

***HEARING ON MOTION IN RE: MOTION FOR ORDER TO ANSWER DEPO QUESTIONS AND PRODUCE DOCS FILE BY DEF ON 09/04/2025**

FILED BY: RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

TENTATIVE RULING:

Summary

Defendants' Motion for Order Compelling Plaintiff Romon Calhoun ("Plaintiff") to Provide Answers to Deposition Questions for production of documents, and for sanctions, is **granted** as set forth herein.

Background

This is a limited jurisdiction case filed on December 17, 2020 wherein Plaintiff filed causes of action against Defendants for breach of quiet enjoyment, retaliation, constructive eviction, breach of contract and for a return of his security deposit related to the real property located at 1231 Willow Ave., Hercules, CA ("Subject Property"). Defendants are the landlords, property owners or property managers of the Subject Property.

Defendants claim that Plaintiff refused to answer questions during his deposition on July 22, 2025 and refused to produce documents requested without substantial justification relating to his claims related to Defendant's breach of his quiet enjoyment, constructive eviction and related claims. As an example, during his deposition, Plaintiff refused to answer questions, including, but not limited to (a) his current residence after residing at the Willow Ave. address; (b) whether he is living in an apartment; (c) whether he was leasing an apartment, and the identity of persons who have knowledge of this case. These questions are relevant and would lead to the discovery of admissible evidence. Plaintiff also refused prepare responses to Defendant's Request for Production of Documents, Nos. 1-26, without substantial justification. The documents requested include documents that support his claims against Defendants for constructive eviction and .

On September 4, 2025, Defendants Reliant Property Management, Inc., Reliant-East Bay, LP, and Rainbow Housing Assistance Corporation ("Defendants") filed their Motion to Compel Plaintiff to

answer deposition questions and to produce documents. The Motion was supported by a Memorandum of Points and Authorities, Declaration of Craig Nevin, Esq., a separate statement and a Proposed Order. The Motion seeks sanctions in the amount of \$6,019.05. Service was made on September 4, 2025.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is December 4, 2025. The Court finds that no timely opposition was filed by Plaintiff.

Analyses

A. Plaintiff's Status as a Self-Represented Litigant

The Court is cognizant that Plaintiff is proceeding in *propria persona*. However, the law is clear that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Consequently, self-represented litigants, like their represented counterparts, are bound by the procedural rules governing civil litigation. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (stating that "mere self-representation is not a ground for exceptionally lenient treatment" and procedural rules apply equally); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements." The Court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant.

Plaintiff's Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that "A failure to oppose a motion may be deemed a consent to the granting of the motion." This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is "well-within" the court's discretion to deem such inaction "tantamount to a concession that its position in the litigation was not substantially justified." *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785.

Applied to the present matter, the Court finds that Plaintiff's failure to file any opposition to the Motion to Compel Deposition Answers, for Production of Documents and for Sanctions is deemed a consent to the granting of the relief sought by Defendants.

Code of Civil Procedure § 2025.480(a) states, “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Cal. Code of Civ. Proc. § 2025.480(j) also requires this court to impose monetary sanctions against a person who unsuccessfully opposes a motion to compel an answer or production, unless the court finds that the person acted with substantial justification. Here, the Court finds that Plaintiff failed to act with substantial justification in refusing to answer relevant questions and producing documents relevant to his claims. Accordingly, there is good cause to impose sanctions against Plaintiff.

Ruling

Good cause appearing, the Court therefore **grants** Defendants’ Motion in its entirety. Plaintiff Romon Calhoun is ordered to attend deposition and to answer the questions and produce documents identified in Defendants’ Motion no later than ten (10) days from the date of the order. It is further ordered that Plaintiff Romon shall pay Defendants sanctions in the amount of \$6,019.05 within ten (10) days from the date of this order.

Note: The Court’s tentative ruling for No. 1, above, is to dismiss this case with prejudice. If the tentative ruling for No. 1 is not contested, or if it is adopted, the ruling on this matter is as follows: This motion is rendered moot as a result of the dismissal of this case pursuant to Cal. Code of Civ. Proc. § 583.310

Defendant shall prepare a proposed order and judgment conforming to this ruling and shall e-file it with the Court no later than ten (10) days from the date of the hearing.

16. 9:00 AM CASE NUMBER: N25-2210
CASE NAME: KARAN PUNJABI VS. DEPARTMENT OF MOTOR VEHICLES OF THE STATE OF CALIFORNIA
HEARING ON PETITION IN RE: PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS
FILED BY:

TENTATIVE RULING:

Petitioner Karan Ravi Punjabi’s Petition for Writ of Administrative Mandamus filed on October 24, 2025 and supplemented on November 20, 2025 is unopposed by Respondent California Department of Motor Vehicles, and is **granted**. Petitioner shall submit a proposed order granting the Petition for Writ of Administrative Mandamus and other relief requested no later than ten (10) days from the date of this ruling.

17. 9:00 AM CASE NUMBER: N25-2234
CASE NAME: LORI ABREU VS. CONTRACTORS STATE LICENSE BOARD
HEARING IN RE: MOTION FOR WRIT OF MANDATE
FILED BY:

TENTATIVE RULING:

Petitioner Lori J. Abreu's Petition for Writ of Administrative Mandamus, filed on November 11, 2025, is unopposed by the Respondent Registrar of Contractors, Contractors State License Board, and is **granted**. Petitioner shall submit a proposed order granting the Petition for Writ of Administrative Mandamus and other relief requested in her petition no later than ten (10) days from the date of this ruling.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C25-00609
CASE NAME: VICKI RUDD VS. THERESA CALLEJAS
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, REQUEST FOR ADMISSIONS, FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND SANCTIONS
FILED BY: RUDD, VICKI

TENTATIVE RULING:

Summary

This motion is **moot** in part and **granted** in part. The Court finds that Defendants have prepared responses to Plaintiff's Request for Production of Documents, Set One, Request for Admissions, Set One, Form Interrogatories, Set One, Special Interrogatories Set One. As such, the Motion is **moot**. Defendant Theresa Callejas is ordered to provide verifications no later than thirty (30) days after a guardian *ad litem* is appointed for her. Sanctions are granted as requested by Plaintiff.

Background

On August 11, 2025, Plaintiff Vicki Rudd filed a Motion to Compel Further Responses to Request for Production of Documents, Request for Admissions, Form Interrogatories and Special Interrogatories, and for Sanctions. The Motion is supported by a Memorandum of Points and Authorities, Declaration of Counsel Vrej Garabedian,

On December 5, 2025, Defendants lodged a statement of non-opposition, supported by Counsel Amanda M. Rawashdeh's 502 page declaration claiming that Defendants have submitted further answers and thus, this motion is moot. Plaintiff did not file a reply brief.

Analyses

Plaintiff's Motion is procedurally defective.

In California, motions to compel further discovery responses (for interrogatories, document requests, admissions) require the preparation of a separate statement under Cal. Rules of Court (CRC) Rule

3.1345, detailing each disputed request, its text, the inadequate response/objection, and legal/factual reasons for compelling, so the court can rule without other documents; while motions to compel initial responses might not need one. (CRC 3.1345, CCP § 2030.300). However, because Defendants filed a Statement of Non-Opposition, the Court will not continue this motion to allow Plaintiff to come into compliance with this basic rule of motion practice. Counsel are admonished to comply with the Rules of Court and the Discovery Act in any future motions.

Ruling

This motion is **moot** in part and **granted** in part. The Court finds that Defendants have prepared responses to Plaintiff's Request for Production of Documents, Set One, Request for Admissions, Set One, Form Interrogatories, Set One, Special Interrogatories Set One. As such, the Motion is **moot**. Defendant Theresa Callejas is ordered to provide verifications no later than thirty (30) days after a guardian ad litem is appointed for her.

With respect to Plaintiff's request for sanctions, the motion is **granted**. The Court finds that Plaintiff was required to file and pursue this motion to compel further responses to discovery because Defendants, despite being provided with five weeks of extensions, did not file responses to discovery until December 3, 2025. The Court finds that this series of delays is without substantial justification and subjects Defendants to sanctions. Defendants are ordered to pay Plaintiff sanctions in the amount of \$3,600 no later than ten (10) days from the date of this hearing. The Court finds that the amount of sanctions are reasonable. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days following this hearing.

19. 9:01 AM CASE NUMBER: C23-02347

CASE NAME: KRISTIN CASEY VS. KRIS HANSEN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES FROM DEFENDANT D.R. HORTON, INC.**

FILED BY: CASEY, KRISTIN

TENTATIVE RULING:

Summary

Plaintiff Kristin Casey' ("Plaintiff") Motion to Compel Further Discovery Responses from Defendant D.R. Horton, Inc. is **granted** in part and **denied** in part as set forth in this tentative ruling.

Background

On August 11, 2025, Plaintiff Kristin Casey ("Plaintiff") filed a Motion to Compel Further Discovery Responses from Defendant D.R. Horton, Inc. ("DRH"). The Motion was supported by a Notice, Separate Statement, Declaration of Counsel Drew F. Teti. Plaintiff's Motion seeks further discovery responses to her Request for Production of Documents, Set 1, Nos. 1-37, and Form Interrogatories, Employment Set 1, No. 216.1 relating to the 42 affirmative defenses alleged by DRH. Plaintiff asserts that the objections made by DRH in their discovery response are "single, boiler-plate mega objections" that are improper, amounting to over 1500 objections to the discovery requests.

On December 4, 2025, DRH filed its opposition to the Motion, supported by a declaration of Counsel Zachary T. Lynch. In summary, DRH asserts Plaintiff's motion is procedurally defective, that DRH

objections are valid, and their responses are code-compliant pursuant to the Discovery Act. Defendant also asserts that Plaintiff has failed to meet and confer regarding Electronically Stored Information (“ESI”).

On December 10, 2025, Plaintiff filed a reply brief addressing the points raised in opposition, which the Court considered.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

The moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (Cal. Code of Civ. Proc. § 2031.240(c)(1).

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remain applicable today. “That is, the Legislature intended to take the “game” element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away “with the sporting theory of litigation—namely, surprise at the trial.” *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to “make a trial less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.”

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c).

Here, the record submitted to the Court show that counsel attempted to meet and confer by

exchanging communications about this discovery dispute. This requirement is satisfied.

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

The Court makes the following ruling and orders regarding:

1. Plaintiff's Motion to Compel Further Response to Request for Production of Documents, Set One:
 - A. Requests Nos. 1, 2, 3, 4, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15, 6, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36 : **Granted**. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that DRH does not have documents to produce, it shall comply with Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. And, to the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed.
 - B. Request No 17: **Granted** in part and **denied** in part. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses to this request. To the extent that DRH does not have documents to produce, it shall comply with Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed. The Court finds that the request for FEHA claims for the past 10 years preceding Plaintiff's claims are overbroad in scope. This objection is sustained. DRH is ordered to produce three (3) years of prior FEHA claims made against DRH.
 - C. Request No 37: **Granted** in part and **denied** in part. DRH's sixteen (16) objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound*,

supra. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that Plaintiff's request for documents that Defendant believes are relevant to the dispute, but have not already been produced is vague, ambiguous and overbroad. This request is **denied**.

2. Plaintiff's Motion to Compel Further Response to Form Interrogatories, Set One.

- A. No. 215.1: **Granted**. The preliminary and specific objections to this response constitutes impermissible boilerplate objections and are overruled. Such actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant answers to this request, including the subparts, (a), (b), and (c).
- B. No. 216.1, Affirmative Defenses 1, 2, and 14, : **Granted**. DRH's preliminary and specific objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed..
- C. No. 216.1, Affirmative Defenses 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, and 42 : **Granted** in part. **Denied** in Part. DRH's preliminary and specific objections incorporated into to each response, taken as a whole, constitute impermissible boilerplate objections and, as such, are overruled. DRH's actions are an egregious display of an overuse of inapplicable objections and the type of gamesmanship that is proscribed by *Greyhound, supra*. Had Plaintiff requested sanctions, this Court would have likely granted them. The Court finds that the items requested are relevant in that production will lead to the discovery of admissible evidence. DRH shall provide full, code compliant responses, without any objections, to this request. To the extent that the information calls for documents that are privileged, DRH is ordered to produce a privilege log as required by the Discovery Act, identifying each document for which the privileged is claimed, the date it was produced, and the nature of the privileged claimed. The Court finds that DRH has answered these interrogatories.
3. Time of Production: DRH is ordered to produce further responses, including documents, per the above no later than ten (10) days from the date of being served with an order after hearing.

4. Plaintiff is ordered to prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling as an exhibit.

20. 9:01 AM CASE NUMBER: C23-01292

CASE NAME: PATRICIA KUBICHEK VS. MICHAEL YRUETA

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF PATRICIA KUBICHEK'S DEPOSITION**

FILED BY: KUBICHEK, PATRICIA

TENTATIVE RULING:

Summary

This matter comes before the Court on Defendant Accor Management US, Inc. dba Fairmont Hotels' ("Accor") Motion to Compel the Deposition of Plaintiff Patricia Kubichek ("Plaintiff") and for sanctions. The Motion is **granted** in its entirety, as set forth herein.

Background

Plaintiff alleges that she sustained injuries and damages after being struck in the head by a lava rock thrown by a minor hotel guest while she was at or near the beach adjacent to the Fairmont Hotel operated by Accor. Plaintiff initiated this action against Accor and the minor's parents, Defendants Michael and Leslie Yrueta (collectively, "Yruetas").

Accor served a notice of deposition on Plaintiff for November 20, 2023. However, the deposition was repeatedly canceled by Plaintiff's counsel, Flavio Cajina. On February 20, 2024, the Court ordered Plaintiff's deposition to be completed by June 18, 2024. By Court order dated April 30, 2025, Mr. Cajina was disqualified from representing Plaintiff at her deposition.

On July 11, 2025, Accor served its Third Amended Notice of Taking Deposition for August 5, 2025 (Dellecker Declaration, Exhibit A). Plaintiff filed no objection to the Notice. Accor contends that Plaintiff and her counsel failed to cooperate with the noticed deposition and did not meaningfully meet and confer to propose an alternative date. To date, Plaintiff's deposition remains untaken.

On August 29, 2025, Accor filed the present Motion to Compel, supported by a Notice, Memorandum of Points and Authorities, Declaration of Counsel Catherine L. Dellecker, and a proposed order. On December 1, 2025, the Yruetas joined Accor's motion.

Plaintiff filed her opposition on December 4, 2025, supported by the Declaration of Counsel Fulvio F. Cajina. Mr. Cajina asserts that as of March 26, 2025, the Court disqualified him from taking or defending Plaintiff's deposition. He further alleges that Accor unilaterally noticed Plaintiff's deposition for August 4, 2025, without conferring with him. Mr. Cajina states he was unable to secure counsel to represent Plaintiff at the deposition and that Plaintiff was unavailable and traveling at the time, while he was engaged in a multi-week federal trial that concluded on August 26, 2025. He offered to reschedule the deposition for September, but Accor declined to accommodate his trial schedule and instead filed this motion. Plaintiff argues that Accor failed to meet and confer in good faith. The Court has considered Plaintiff's additional arguments.

On December 12, 2025, Accor filed its reply, requesting that the Court order Plaintiff to appear for her deposition and produce the records requested in the deposition notice. Accor disputes Plaintiff's claim

that she agreed to a September deposition, asserting that Plaintiff was still seeking counsel at the time.

Analyses

A. Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act (Code Civ. Proc. §§ 2016.010–2036.050). The Act provides litigants with the right to broad discovery (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402). Under Code Civ. Proc. § 2017.010, any party may obtain discovery regarding any non-privileged matter relevant to the subject matter of the action or to the determination of any motion, provided the matter is admissible in evidence or reasonably calculated to lead to the discovery of admissible evidence (see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402). The Court may limit discovery where the burden, expense, or intrusiveness outweighs the likelihood that the information sought will lead to admissible evidence (Code Civ. Proc. § 2017.020(a)).

B. Duty to Meet and Confer

Parties to a discovery dispute must meet and confer in good faith to informally resolve the dispute (Cal. Code Civ. Proc. §§ 2016.040, 2030.300; *Golf & Tennis Pro Shop, Inc. v. Sup. Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138). The Contra Costa County Superior Court Local Rules also require meet-and-confer efforts (L.R. 2.121(e)) and mandate that motions be filed sparingly and in good faith (L.R. 2.122(c)).

Here, the record shows that Plaintiff’s counsel failed to file timely objections to the deposition notice and made, at best, perfunctory attempts to meet and confer. While Mr. Cajina cites his trial schedule and efforts to secure replacement counsel, the Court finds his efforts insufficient to constitute a reasonable and good faith attempt to resolve this discovery dispute.

C. Depositions

Under Cal. Code Civ. Proc. § 2025.210, any party may serve a deposition notice on another party. Proper notice compels the deponent to appear, testify, and produce records (Code Civ. Proc. §§ 2025.220, 2025.240, 2025.270, 2025.280(a)). Written objections must be served at least three calendar days before the deposition (Code Civ. Proc. § 2025.410(a), (b)). If a deponent fails to appear or produce documents without valid objections, the noticing party may move to compel attendance and production (Code Civ. Proc. § 2025.450(a)). The burden shifts to the responding party to justify objections (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255).

Here, Plaintiff received 25 days’ notice of her deposition and failed to serve timely objections, thereby waiving them. The record confirms that Plaintiff’s counsel did not make her available for deposition as of the hearing date. Notably, at the December 16, 2025, case management conference, Mr. Cajina represented that he had secured counsel for Plaintiff’s deposition. Accor’s counsel, Ms. Dellecker, stated this was the first such communication.

Ruling

Based on the foregoing, the Court finds good cause to grant Accor’s Motion to Compel. Plaintiff is ordered to appear for her deposition no later than January 16, 2026, and to produce all requested

documents within ten (10) days from the date of this order. Plaintiff and/or her counsel of record, Flavio Cajina, are ordered to pay sanctions in the amount of \$1,000 to Accor pursuant to Cal. Code Civ. Proc. § 2025.450(g)(1), payable within ten (10) days of this order. The proposed order lodged on August 29, 2025, is approved and will be executed.

21. 9:01 AM CASE NUMBER: C22-01951

CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET THREE**

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Summary

This tentative ruling is issued for Lines 21, 22 and 23. Defendant John Muir ("Defendant") filed the following discovery Motions against Plaintiff Dianna Jiminian ("Plaintiff"):

1. Motion to Compel Further Responses to Form Interrogatories, Set. 2, filed October 13, 2025
2. Motion to Compel Further Responses to Request for Admissions, Set 2, filed October 14, 2025
3. Motion to Compel Further Responses to Defendant's Form Interrogatories, Set 3, filed October 15, 2025

The hearing on these motions were scheduled to be heard in March. The Court advanced the hearing of these Motion to December 17, 2025 in preparation for the trial of this matter, the first phase of which is scheduled for January 12, 2025. The Court rules on each of these motions as set forth below.

Background

- On September 21, 2022, Plaintiff, filed the operative Complaint, in which she alleges she slipped and fell while working as a traveling nurse at Defendant John Muir Health, in Concord, California.
- On July 16, 2025, Defendant served Form Interrogatories, Set Two, and Requests for Admissions, Set Two via electronic service on Plaintiff. On August 19, 2025, Plaintiff served responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025, counsel for Defendant sent meet and confer correspondence to Plaintiff regarding insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On August 20, 2025 Defendant served Form Interrogatories, Set Three and Requests for Admission, Set Three.
- On August 29, 2025, Plaintiff served amended responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- On September 11, 2025, counsel for Defendant sent another meet and confer correspondence to Plaintiff regarding continued insufficient and non-code compliant responses to Defendant's Form Interrogatories, Set Two and Requests for Admissions, Set Two.
- According to Defendant, Plaintiff refused to issue amended responses. Accordingly, defense

counsel filed motions to compel further responses to Form Interrogatories, Set Two and Requests for Admissions, Set Two on October 13, 2025. These motions was set by the court on March 4, 2026.

- On October 14, 2025, Plaintiff served responses to Form Interrogatories, Set Three and Requests for Admission, Set Three. Defendant contends that the responses consisted of meritless objections.
- On October 22, 2025, defense counsel sent detailed meet-and-confer letters identifying the deficiencies and requesting amended responses within ten days. Defendant claims that Plaintiff did not respond in any way to defense counsel's meet and confer efforts, accordingly, defense counsel filed motions to compel further responses to Form Interrogatories, Set Three and Requests for Admissions, Set Three on November 3, 2025. The hearing for these motions was also set by the court on March 4, 2026.
- Defendant seeks sanctions for each of the Motions.
- Plaintiff filed timely oppositions to each of the foregoing Motions, claiming that Plaintiff has fully responded to each of the discovery requests, and denying the claim for sanctions. The Court has reviewed the oppositions.
- Defendant filed reply briefs on December 10, 2025, which the Court has reviewed.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act (Code Civ. Proc. §§ 2016.010–2036.050). The Act provides litigants with the right to broad discovery (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402). Under Code Civ. Proc. § 2017.010, any party may obtain discovery regarding any non-privileged matter relevant to the subject matter of the action or to the determination of any motion, provided the matter is admissible in evidence or reasonably calculated to lead to the discovery of admissible evidence (see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402). The Court may limit discovery where the burden, expense, or intrusiveness outweighs the likelihood that the information sought will lead to admissible evidence (Code Civ. Proc. § 2017.020(a)).

Duty to Meet and Confer

Parties to a discovery dispute must meet and confer in good faith to informally resolve the dispute (Cal. Code Civ. Proc. §§ 2016.040, 2030.300; *Golf & Tennis Pro Shop, Inc. v. Sup. Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138). The Contra Costa County Superior Court Local Rules also require meet-and-confer efforts (L.R. 2.121(e)) and mandate that motions be filed sparingly and in good faith (L.R. 2.122(c)). Here, the record shows that Counsel met and conferred before these motions were filed.

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Request for Admissions

The response to a request for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” CCP §2033.220(a). The section also imposes a duty of “reasonable inquiry.” CCP §2033.220(c). This means that the responding party must seek information beyond their personal knowledge and inquire of sources of information within their reach, custody, or control. At a minimum, the response should reflect all the information reasonably available to a party, including that in the possession of the party’s attorney or designated expert (unless privileged). See *Chodos v Superior Court* (1963) 215 CA2d 318, 322.

The answer to a Request for Admission may be phrased as a denial of the entire request or of the part of the request that is untrue. See CCP §2033.220(b)(2). Like an admission, a denial must be as complete and straightforward as the information available to the responding party permits. CCP §2033.220(a). However, if the party knows that the fact that it is requested to admit is true, a denial should not be made. The requesting party may later recover the expense, including attorney fees, incurred in proving the denied fact (or the denied genuineness of a document) if the denial is later found by the court to have been unjustified. Counsel should be aware that the cost-of-proof sanction is not usually sought. Nevertheless, a court can award sanctions under CCP §2033.420 even after granting a summary judgment motion, if the court determines that the legal issues were “proved” as part of the summary judgment motion. *Barnett v Penske Truck Leasing Co.* (2001) 90 CA4th 494, 498.

If the responding party gives lack of information or knowledge as a reason for failing to admit all or part of a request for admission, the party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” CCP §2033.220(c). A general objection that a party has not “completed its investigation of the facts” and that the responses were prepared “on the basis of information presently available to and located ... upon reasonable investigation” does not prevent a specific admission from being conclusively established against the answering party, unless the party moves to withdraw or amend the admission. *Joyce v Ford Motor Co.* (2011) 198 CA4th 1478, 1489

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

Defendant’s Motion to Compel Further Responses to Form Interrogatories, Set. 2:

Interrogatory No. 17.1: RFA 4-7, and 10-22: Granted in part. Denied in part. Plaintiff’s objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to

address each sub-part of this interrogatory.

Interrogatory No. 17.1: 24-32: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to address each sub-part of this interrogatory.

Defendant's Motion to Compel Further Responses to Request for Admissions, Set 2:

RFA Nos. 5, 7, 8, 9, : Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response indicating that she lacks information and cannot admit or deny the requests. Such response complies with CCP §2033.220(c).

RFA Nos. 24, 25, 26, 27, 28, 29, 30, 31, 32: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response to the request for admission.

Defendant's Motion to Compel Further Responses to Interrogatories, Set 3

Interrogatory No. 17.1: RFA 32-35, 37, 39-48, 87-100: Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff does not state facts that support her denial of the request for admissions. She, instead, makes blanket objections that do not apply and does not make a meaningful effort to meet and confer. Plaintiff also fails to answer the sub-parts of interrogatories that identify the names and addresses of people who have knowledge of the facts and the documents that support her response. To the extent that she identifies John Muir doctors and employees that are responsive to this request, she is required to list them by name. Plaintiff shall provide further code-compliant responses to address each sub-part of this interrogatory.

Defendant's Motion to Compel Further Responses to Request for Admission Set 3:

RFA Nos. 33, 34, 35, 36, 37, 39, 40, 41, 42, 43, 44, 45, 46, 47, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, : Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response indicating that she lacks information and cannot admit or deny the requests. Such response complies with CCP §2033.220(c).

RFA Nos. 32. Granted in part. Denied in part. Plaintiff's objections are overruled. Plaintiff prepared a response to the request for admission.

Sanctions are denied. The Court finds that neither party misused the discovery process. Each party shall bear their own attorney's fees and costs in prosecuting and defending this motion.

Time of Production: Plaintiff is ordered to produce further responses, without objections, per the above no later than ten (10) days from the date of being served with an order after hearing. Defendant is ordered to prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling as an exhibit.

22. 9:01 AM CASE NUMBER: C22-01951

CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSIONS, SET 2**

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

See Line 21, above.

23. 9:01 AM CASE NUMBER: C22-01951

CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET TWO AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL IN THE AMOUNT OF \$1,290**

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

See Line 21, above.